ALBATROSS
ADJUSTERS LIMITED

No. 11.426-2/ADJ

ADJUSTMENT

OF

GENERAL AVERAGE

(Per York-Antwerp Rules 1974/1990 and 1994)

on the Maltese motor vessel

CMA CGM LIBRA

Built 2010 GT 131.291

Master: Captain Dan Stelian Culusi

on its Liner Service Voyage No. FL748W from Far East ports to ports in the Mediterranean and North Europe with containerised cargo.

CASUALTY	Grounding off Xiamen Port, China on 18th May 2011, refloated under Lloyd's Open Form Contract (LOF 2011) after discharge of vessel's bunkers and 63 containers.

REGISTERED OWNERS	**SNC ALIZE 1954, MARSEILLE**
BAREBOAT CHARTERERS	**CMA CGM SA, MARSEILLE**
MANAGING OWNERS	**CMA SHIPS SA, MARSEILLE**

Instructed Average Adjusters:-

ALBATROSS ADJUSTERS LIMITED
23 Spyros Kyprianou Avenue, 3rd Floor Protopapas Building,
Mesa Geitonia, 4003 Limassol,
PO Box 54117, 3721 Limassol, Cyprus
Tel. +357-2558 8988 Fax. +357-2558 3254
E-mail: admin@alba.com.cy Web: www.alba.com.cy

Co-Adjuster:-

PIERRE ALBERTINI
Expert Répartiteur
16 rue Breteuil
13001 Marseille, France

TABLE OF CONTENTS

		PAGE
PART ONE	**NARRATIVE AND ADJUSTERS' NOTES**	5
	NARRATIVE	6
	DATA FOR GENERAL AVERAGE	8
	ADJUSTERS' NOTES	11
PART TWO	**REPORTS AND OTHER DOCUMENTS**	12
A	Master's Letter of Protest, dated 18th May 2011.	13
B	Master's Statement of Facts, dated 18th May 2011.	14
C	Owners' Statement of Timings for the period 18th to 27th May 2011.	16
D	Deck Log Book Extract, covering 18th – 26th May 2011. (prepared by the Average Adjusters).	21
E	Salvage Contract, Lloyd's Standard Form of Salvage Agreement (LOF 2011) dated 23rd May 2011.	25
F	Survey Report No. DH-T-(11)084, dated 31st May 2011, of General Average Surveyors, Shanghai Double Hope Maritime Development Co. Ltd., Shanghai	27
G	Master's Statement of Facts for the period 26th to 30th September 2011.	35
H	Survey Report No. 1/2011/0566, dated 3rd October 2011, of Leading Hull Underwriters, The Swedish Club, Gothenburg.	36
I	Ship Valuation Certificate, dated 21st October 2011.	43
J	Salvage Settlement Agreement dated 27th February 2014.	44
K	Hull & Machinery Cover Notes. (Summary, only reproduced in version for Shipowners and Hull Underwriters)	47

Cont/d

TABLE OF CONTENTS (Cont/d)

			PAGE
PART THREE		**CLAIM CALCULATION**	49
I		CONTRIBUTORY INTERESTS AND VALUES	50
II		GENERAL AVERAGE EXPENDITURE AND ALLOWANCES	
	A	Salvage Remuneration and Costs	51
	B	Expenditure in China	67
	C	Crew Wages, Maintenance and Bunker Consumption	75
	D	Miscellaneous Disbursements	79
		SUMMARY OF DISBURSEMENTS AND ALLOWANCES	89
III		DISTRIBUTION OF GENERAL AVERAGE	93
IV		SETTLEMENT OF GENERAL AVERAGE	96

* * * * *

PART ONE NARRATIVE AND ADJUSTERS' NOTES

NARRATIVE

The container vessel "CMA CGM LIBRA" was employed in a container liner trade between Far East, North African and European ports. On 18th May 2011, the vessel departed from the port of Xiamen, China with a pilot on board at 00.45 hours and cast off lines at 01.08 hours. The pilot disembarked at 02.13 hours local time and the vessel under Master's orders, proceeded towards the open sea. At the time, the vessel was bound for Hong Kong with general cargo stowed in 5.983 containers destined for 10 scheduled discharge ports and about 184 different final destinations At about 02.35 hours the vessel grounded at position 24° 20' North and 118° 09.5' East. The chart indicated a depth of between 30 and 40 meters in the grounding location, whilst the vessel reported a draft of 15,15 metres fore and aft.

Refloating efforts by deballasting and working the main engine dead slow astern failed. Three tugs were sent by the Xiamen port authority and arrived at vessel's position at 04.42 hours. A further refloating attempt was made with tug assistance at 11.12 hours on 18th May however, same was also unsuccessful.

Based on information obtained at the time, the tides had been falling from 18th May onwards and also the typhoon season was imminent and a deterioration in the weather conditions was expected in the coming days. Two tropical revolving storms were developing in the region and one was expected to affect the grounding location, which was also subject to strong currents. Considerable pressure was exerted on the Owners by the Chinese Authorities to hire a Chinese Salvage company and, under the circumstances, the Shipowners decided to enter into a Salvage contract as per Lloyd's Standard Form of Salvage Agreement (LOF 2011) with professional Salvors, Shanghai Salvage Company, on 23rd May. The Scopic Clause was incorporated.

Upon signing of the LOF 2011, the Owners declared General Average and appointed Albatross Adjusters Limited, as Average Adjusters. At that point in time, it was anticipated that several hundred containers were required to be discharged. A local survey company was therefore, instructed on behalf of the General Average Community to monitor and report on the lightering operations, as well as the reloading of the containers on substitute vessels.

Using bunker fuel barges, a total of 6.595 mt of fuel oil were discharged between 20th and 25th May. Starting on 23rd May, 63 containers were discharged with an estimated combined weight of 1.051,28 mt, using a floating crane and container barges. On 26th May, the container discharge was stopped at 02.10 hours in view of deteriorating weather conditions. Shortly after, nine tugs made fast for a further refloating attempt and the vessel was refloated at 05.18 hours and commenced moving astern at 05.21 hours. After checking the ballast tanks and bilges with a pilot on board, the vessel dropped anchor in deep water at 07.42 hours. At 15.25 hours the fuel oil transfer from one of the bunkering barges commenced. The vessel was redelivered by the Salvors on 26th May.

On 27th May, a Class approved diving company attended and carried out an underwater survey. With the exception of damages to the hull coating no structural damage was found or reported. Transfer of 3.518,1 mt of fuel oil from barges onto the vessel was completed on 27th May at 07.22 hours. As the weather worsened, the Shipowners obtained authorization from the Port Authority as well as from Customs, for the "CMA CGM LIBRA" to sail without the reloading of 2.248,4 mt of fuel oil. Subsequently, these remaining bunkers were transferred onto "CMA CGM MUSCA" on 31st May 2011.

Cont/d

NARRATIVE (Cont/d)

On 28th May at 08.26 hours, the "CMA CGM LIBRA" heaved up the anchor and proceeded to her next scheduled port, Hong Kong.

The Salvors obtained security in respect of their claim for salvage remuneration from Hull Underwriters and Vessel's Interests. This allowed the laden voyage on the "CMA CGM LIBRA" to proceed without the necessity of having to collect separate Salvage security from Cargo Interests. Direct salvage security was collected from Container Interests.

The 63 containers discharged from the vessel during the lightering operations were initially stored at the Hai Run Container Terminal and on 30th May 2011 same were loaded on board the "CMA CGM MUSCA". One container(No. HDMU6465780 in position 141086) was reportedly damaged during the part discharge. Subsequently, it was ascertained that the cargo in the container had not been affected and the damage to the container box was minor.

The last container that was on board the "CMA CGM LIBRA" at the time of the grounding was discharged at Le Havre, France on 30th June 2011.

The collection of General Average securities from parties concerned in cargo and containers was initiated on 28th May 2011. Towards the end of July 2011 (approximately 8 weeks into the collection process) about 95 per cent of the total number of consignments had been secured and released as far as General Average formalities are concerned. All cargo and containers on board the vessel were secured as far as General Average formalities are concerned, save for some rather low value consolidated shipments.

The "CMA CGM LIBRA" subsequently dry-docked on 30th September 2011 in a floating dock, with 1.035 TEU's of cargo on board, at the CSI Shipyard, Shanghai, China. The underwater hull was blasted and re-coated in way of the damaged paint coating and, on completion of repairs the vessel was refloated on 3rd October 2011. The damages sustained by the vessel were not considered to be attributed to refloating efforts.

The Vessel's Interests engaged in settlement negotiations with Salvors and their legal Representatives. Various meetings were held in Marseille, London and Shanghai for the purpose of exploring a possible early settlement of the salvage claim. Leading Hull Underwriters were involved throughout the process. Settlement of the salvage claim was not attained and the Vessel's Interests and their legal Representatives also engaged in discussions with legal Representatives acting for major Cargo and Container Interests.

Reportedly, the Salvors appointed Salvage Arbitrator in March 2013 with a view to preserving the time bar and initiating the Salvage Arbitration proceedings. A further meeting was held towards the end of February 2014 and amicable settlement of the Salvage claim was reached at an all-inclusive amount of USD 9,5 million. Payment of this amount was effected by Shipowners on 24th March 2014.

* * * * *

DATA FOR GENERAL AVERAGE

Basis of General Average

Our Technical Consultant, Mr. Ray Wickman, C. Eng. MIMarEST advised that following the grounding on 18th May 2011, the vessel and her cargo were in a common peril situation.

Contracts of Affreightment

At the time of the casualty the vessel was carrying 5.983 manifested containers for 10 Main Line Operators under 3.361 Ocean Bills of Lading (4.961 actual Bills of Lading, including consolidated consignments), namely: -

-	CMA – CGM	1.812 Ocean Bills of Lading	3.411 units
-	ANL	505 Ocean Bills of Lading	783 units
-	DELMAS	157 Ocean Bills of Lading	288 units
-	CNC	7 Ocean Bills of Lading	28 units
-	CHINA SHIPPING	249 Ocean Bills of Lading	394 units
-	HYUNDAI	180 Ocean Bills of Lading	341 units
-	APL	180 Ocean Bills of Lading	275 units
-	EMC	125 Ocean Bills of Lading	228 units
-	MOL	136 Ocean Bills of Lading	225 units
-	FESCO	10 Ocean Bills of Lading	10 units

The Bills of Lading, i.e. the contracts of affreightment, stipulate that General Average has to be drawn up in accordance with the York-Antwerp Rules 1974 as amended 1990, with the exception of the Bills of Lading issued by Delmas, Hyundai, APL, EMC, MOL and Fesco, which provide for York-Antwerp Rules 1994.

In order to give effect to the different stipulations in the Bills of Lading, we have prepared this Adjustment on the basis of both sets of Rules, i.e. 1974/1990 and 1994. Similar allowances in General Average are made under the 1974/1990 and 1994 Rules, requiring only one General Average column, except for the allocation of General Average interest per Rule XXI, which is shown separately for the Adjustment under the 1974/1990 and 1994 Rules respectively.

Place of Adjustment

The Bills of Lading issued by CMA-CGM stipulate that General Average be adjusted at Marseille, with Bills of Ladings of all other lines leaving the place of adjustment at the option of the vessel's Operators. Albatross Adjusters Limited in Limassol, Cyprus were appointed by the Shipowners as Average Adjusters in this case. Under the circumstances, the formal Adjustment of General Average has been issued by our firm jointly with the Marseille based Average Adjuster Mr. Pierre Albertini as Co-Adjuster.

Currency of the Adjustment

In the absence of an expressed currency in the contracts of affreightment, the Adjustment of General Average has been drawn up in United States Dollars, being the currency of the major General Average expenditures.

Cont/d

DATA FOR GENERAL AVERAGE (Cont/d)

Principal Allowances in General Average

The following principal allowances have been made in General Average in accordance with the York-Antwerp Rules 1974/1990 and 1994:-

Expenditure in the nature of salvage	Rule VI
Expenses incurred in lightening the vessel whilst aground, and subsequent reshipping	Rule VIII
Deviation of the vessel to a safe anchorage off Xiamen as place of refuge and detention there during reloading of bunkers	Rule XI
Various expenses considered to be a direct consequence of the General Average act	Rule C Rule XI(d) - YAR1994

Salvage

Salvage security for the vessel was posted by The Swedish Club on behalf of the vessel's Hull & Machinery Underwriters. Salvage security in respect of container boxes was submitted by the Owners of the containers. Security was lodged by Vessel's Interests on behalf of Cargo Interests, thus allowing the prosecution of the laden voyage on the "CMA CGM LIBRA" to the relevant ports of discharge, without the necessity of Cargo Interests having to arrange for submission of Salvage security.

A meeting was convened in Shanghai on 27th February 2014, attended by Salvors and their Solicitors and Vessel's Interests including Shipowners, their Solicitors, vessel's P&I Club and Hull Underwriters. Negotiations were held and the salvage was settled at an amount of USD 9,5 million, inclusive of interest, costs and currency uplift. Although the settlement was on the basis of an 'all in' amount, we are advised by Shipowners' Solicitors that same refers to a base award of about USD 7,045 million, legal costs of USD 500.000, currency uplift of 6,146% and interest at 7,4% for a period of 2,75 years.

This was against a salved fund in excess of USD 500 million and services during 6 days, 3 of which were under LOF. The out of pocket expenses were USD 1,8 million. The vessel was aground with allegations of scouring leading to stresses on the vessel and with tropical storms forecast to pass over the area. Salvors utilised a crane barge and various tugs to offload containers whilst owners engaged in self-help by removing the fuel oil to prevent pollution. In those circumstances, particularly the size of the fund it is believed that the settlement was reasonable. We are advised that if the dangers contended for by Salvors had been made out, any award is likely to have been significantly higher.

Cont/d

DATA FOR GENERAL AVERAGE (Cont/d)

General Average Security

At the ports of discharge, the cargo was released to Cargo Interests against submission of signed Average Bonds and corresponding Average Guarantees, respectively Cash Deposits set at 8% of the contributing value, all collected by the appointed Average Adjusters. Average Bonds and Guarantees were of standard format incorporating a Non-Separation-Agreement.

Contributory Values

Contributory values of the vessel, cargo, containers and bunkers have been calculated on the basis of the information and documentation made available to us, in accordance with the provisions of Rule XVII of the York-Antwerp Rules, as follows: -

The Vessel
As per the Valuation Certificate of London Valuers, N. Shipley & Co., see Document I, the vessel's sound market value at the time of the termination of the adventure on 30th June 2011 was USD 120.000.000. The costs of casualty repairs in the amount of USD 385.513, see Schedule I, have been deducted from the sound market value. Accordingly, the total Contributory Value of the vessel has been calculated with USD 119.614.487.

The Cargo (incl. Freight)
The value of all the cargo, including freight, carried on board the vessel at the time of the casualty under 3.361 Ocean Bills of Lading (that is a number of 4.961 actual Bills of Lading, including consolidated consignments) and stowed in 5.983 containers has been calculated with USD 367.418.702. This includes the value of 2 Shippers' owned containers (namely, container Nos. TFJU1104091 and TFJU1104147). The Bill of Lading terms of Main Line Operators involved, i.e. CMA CGM, provide that freight shall be deemed fully earned upon booking of the cargo for the carriage and shall be paid and non-returnable in any event. Other Line Operators have similarly worded clauses in their Bills of Lading to the same effect. Therefore, freight contributes to General Average as part of the cargo value at risk and same is not separately identified.

The Containers
The value of 5.981 containers carried on board the vessel has been calculated with USD 14.315.119 based on the information received from container Interests. The value of 2 Shippers' owned containers (namely, container Nos. TFJU1104091 and TFJU1104147) is included in the value of cargo.

The Bunkers
The Contributory value of bunkers is calculated with USD 1.675.696, see Schedule I. In particular, we have considered the value of 2.248,4 mt of fuel oil not reloaded on "CMA CGM LIBRA" in view of worsening weather conditions. We are informed that these bunkers were transferred onto "CMA CGM MUSCA" on 31st May 2011.

* * * * *

ADJUSTERS' NOTES

1. We certify that the documents and accounts in respect of the disbursements dealt with in this Adjustment have been submitted to and examined by us.

2. We have either seen some documentary evidence indicating payment or have received in reply to our specific enquiry, advice from the parties concerned that payment of all accounts has been effected, with the exception of our fees and expenses.

3. On 25th May 2011 Surveyors Shanghai Double Hope Maritime Development Co. Ltd., Shanghai were instructed on behalf of the General Average Community to monitor and report on the lightering and subsequent reloading of bunkers and containers.

4. Repairs of casualty damages sustained during the grounding have been carried out and surveyed by Leading Hull Underwriters, The Swedish Club, Gothenburg. Upon our specific enquiry we have received confirmation that no sacrifice damages were sustained by the vessel during the salvage operations.

5. The Shipowners' claim of Particular Average has reportedly been settled by the vessel's Hull & Machinery Underwriters.

6. Upon our specific enquiry with Cargo Interests of cargo stowed in container No. HDMU6465780, we have received written confirmation that no sacrifice damages were reported to the cargo in the container. Furthermore, we are advised by the appointed Cargo Surveyors that the damages to the container were limited and we have refrained from considering an allowance in General Average.

7. Pollution prevention measures were imperatively deployed by the MSA, initially as a consequence of the accident as such. Upon our specific enquiry it was confirmed by the Leading Hull Underwriters' Technical Consultant in conjunction with the local CMA CGM Agent that all measures deployed on 18th May 2011, including oil skimming barge, two support barges, a solid oil boom, a spraying device, various personnel, shuttle barges as well as vehicles were also conditional for any refloating attempt by the vessel. This was due to the unknown condition of the vessel's hull at that time. The MSA were unsure if pollution would occur during the refloating attempts, hence the equipment was left in place. The oil boom, which was originally placed around the vessel, was removed prior to each refloating attempt, but held close by in case it was required. After each refloating attempt the oil boom was replaced. In view of the fact that the first refloating attempt with tug assistance took place already in the morning of the 18th May, the entire costs of the pollution prevention measures have been considered in General Average in the terms of Rule XI(d) (York-Antwerp Rules 1994), respectively Rules C and VI (York-Antwerp Rules 1974/1990).

* * * * *

PART TWO REPORTS AND OTHER DOCUMENTS

A.

CMA SHIPS
m/v CMA CGM LIBRA

Port: XIAMEN
Date: 18/05/2011

To whom it may concern:

LETTER OF PROTEST

The undersigned , CULUSI DAN STELIAN , Master of m/v CMA CGM LIBRA, flying the Malta Flag, IMO No. 9399193, registered with a GRT of 131132, NRT 59901, owned by SNC ALIZE 1954, hereby tender the following LETTER OF PROTEST in order to be made manifest to whom may be concerned.

The m/v CMA CGM LIBRA, under my command, while leaving the XIAMEN port, fully and properly manned and in all respects in good sea worthy conditions, after disembarking the pilot, ran aground in the west of the channel.

Today, 18th of May at 02.35 LT (UTC + 8hrs), the vessel ran aground in an area of 30-40 meters charted depths (lat 24- 20.0N long: 118- 09.5E), listing to port and yet unknown damages sustained.

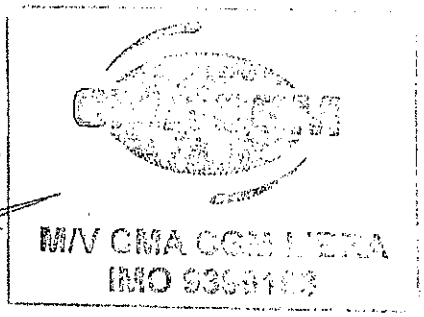
The Xiamen VTS was called and we reported the incident.

I, the Master, hereby protest against for whatever damage, loss or claims may arise from this accident and reserve for myself and for my Owners the right to extend this Letter of Protest at any time and place convenient.

Yours faithfully,

CULUSI DAN STELIAN

Master of C/V CM CGM LIBRA



B.

CMA SHIPS
CMA CGM LIBRA

Port: XIAMEN
Date: 18.05.2011

Statement of Facts

The following events took place after departure maneuver from Xiamen:
Draughts fwd: 15.15m / Aft: 15.15m, density 1010

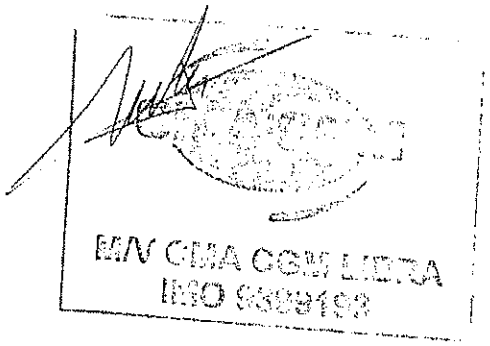
00.00 one hour notice to ECR, preparation for departure as per card no Bridge 080 / 110
00.21 steering gear tested
00.42 STAND BY ENGINE
00.45 Pilot on board
00.53 tug made fast aft No. 3
01.01 start single up FWD / AFT
01.08 let go everything FWD / AFT
01.09 cast off FWD lines / all clear AFT / unberthed
01.10 start turning to port
01.20 let go tug line AFT
01.33 FWD tug clear
01.34 stop turning to port
01.51 passing the buoy no 601
02.00 lat: 24 21.1N; long: 118 04.5E
02.11 passing buoy no 20 / course 136*
02.13 pilot off lat: 24 23.4N; long 118 06.9E
02.20 passed W cardinal buoy at 2.5 cables west
02.35 lat 24- 20.0N long: 118- 09.5E vessel ran aground / listed 10 degrees to port at beginning then 8.5.
02.36 contacted SSE dept / EMERGENCY LINE / VTS XIAMEN ch 08 start monitoring the tanks and bilges
03.05 start sounding the water around the vessel
03.10 sounding port and starboard side found sand and mud
03.14 Tried the engine astern dead slow to half but vessel did not move .
03.16 XIAMEN VTS calling and sent 3 tugs
03.20 start pumping out ballast from ANTI HEELING tanks (400 CM each)
04.10 Harbour master officer on board to assist – made repeated soundings around the vessel and in the vicinity to find the best way out.
04.42 3 tugs arrive and stand by / TUG No. 3; 4 and 15
04.50 start the checking of the lashing
07.10 finish checking the lashing
08.50 deballasting the No. 7 DBWBT Port and Starboard
09.30 pilot on board
11.00 crew stand by
11.17 AFT tug made fast No 4 –various engine orders to work together with tugs to refloat the vessel.
11.18 FWD tug made fast No 3 / Tug No 15 only pushing
11.58 Tug No 15 made fast AFT centre lid

12.34 FWD tug cast off – maneuver did not succeed to refloat the vessel.
12.35 AFT tugs casted off – two tugs remained in stand by.

After running aground remained in contact with the Emergency Room in Marseille and sent several series of soundings around the vessel, ship's condition and tanks status to CMA CGM Head office, Bureau Veritas and MRCC – Harbour master Xiamen.

Master of CMA CGM Libra,

Dan S. Culusi



C.

- STATEMENT OF TIMINGS

Day 1 – 18. May 2011:

02:13 – Pilot off lat: 24 24.4N long: 118 06.9E
02:35 – Vessel running aground – listing to port 10 lat: 20 20.0N long: 118 09.5E
02.36 – Master contacted Xiamen VTS, SSE department Emergency Line
03:16 – XIAMEN VTS sent 3 tugs in assistance
04:09 – Harbor master boat arrives and made round trip around vessel to make soundings
04:18 – Harbor master on board
04:42 – 3 tugs arrive and stand by No. 3 / 4 / 15
06:00 – Harbor master off
09:30 – One pilot on board
First attempt to refloat:
11:12 – Order tugs to make fast
11:17 – Aft tug made fast No 4
11:18 – FWD tug made fast No 3 / Tug No 15 for pushing only
11:58 – Tug No 15 made fast Aft Centre Lid
12:34 – Fwd tug cast off
12:35 – Aft Tugs cast off
13:20 – Pilot off

Day 2 – 19 May 2011:

Second attempt to refloat:
00:50 – SBE
00:58 – Start main engine
01:45 – Tug Xingang Tuo 10 arrive and stand by
02:53 – Stop engine
09:45 – Boat for pollution prevention "Tong Hai Shipping" made fast the oil boom

Day 3 – 20 May 2011:

08:00 – Start diving operations
08:48 – inspection of No. 4 DBWBT (S) completed – no damage found
09:54 – Inspection of the Fore peak tank – no damage found
16:25 – Diving inspection completed
17:17 – Inspection of No 1 WBT (C) – no damage found
17:55 – Bunker barge "Xin Zhou 718" alongside STB
19:30 – 7 stevedores on board
20:11 – Bunker hose connected
20:25 – Start pumping HFO
20:30 – Stop pumping
22:12 – Inspection of No2 WBT STB – No damage found
22:15 – Hose disconnected
22.56 – Inspection of No 2 WBT (S) – No damage found

Day 4 – 21 May 2011

00.10 – Bunker barge "Xing Long Zhou" alongside STB
00.20 – Bunker barge "Hai Da 298" cast off
00.50 – Bunker hose connected
01.00 – Start pumping,reported to Xiamen VTS
09.06 - Inspection of No 2 WBT (P) – No damage found
10.09 – Bunker burge " Tong Hai Shipping" alongside
10.30 – Stop pumping out temporarly
10.45 – 7 Stevedores Off
10.41 – Hose diconected from barge,bunker manifold valve closed
10.48 – 8 Stevedores on
13.40 – Bunker burge "Xing Zhou 718" away
14.05 – Inspection of No 3 WBT (P) – No damage found
14.15 – Bunker burge "Haida" alongside
14.30 – Bunker hose connected
14.35 – Start pumping out
16.45 – Floating crane standing by stbd. side alongside
19.22 – Inspection of No 4 DBWBT (P) – No damage found

Day 5 – 22 May 2011

02.00 – Stop pumping
02.24 – Hose diconected
03.35 – Bunker burge "Haida 768" away
05.10 – Bunker barge " Xin Long Zhou 718" made fast
05.25 – Hose disconnected
05.30 – Start pumping
07.30 – First line of floating crane "Hong Li 900" made fast
07.45 – Second line of floating crane "Hong Li 900" made fast
08.48 – Change of stevedores, 7 stevedores on board
08.57 – Inspection of No 5 DBWBT (S) – No damage found
10.25 – Start discharging containers from bay 13(131788)
12.00 – Temporarly stop discharging containers
12.55 – Floating crane away (2 container discharged)
13.05 – Stop pumping
13.20 – Hose diconected
13.54 – Tug boats arrives(5 tugs)
14.12 – Tug fast stbd quarter "Tug No. 5"
14.17 – Tug fast port shoulder main deck "Tug No. 13"
14.21 – Tug fast port quarter "Tug No. 4"
14.23 – Tug fast port shoulder main deck "Tug No. 15"
14.26 – Tug fast aft center "Gong Hai 113"
14.29 – M/E tested
14.44 – All tugs start pulling
15.46 – Let go all tugs.M/E stopped
15.49 – Fwd and aft tug cast off
16.10 – Aft center tug cast off
17.30 – Bunker barge "Hai Da 898" made fast
18.30 – Start pumping bunker

19.00 – 7 stevedores off
19.40 – 7 Stevedores on

Day 6 – 23 May 2011

02.00 – Floating crane "Hong Li 900" stbd side alongside
02.51 – Start discharging container in bay 02 row 13
08.00 – 7 Stevedores off
08.44 – 6 Stevedores onboard
08.50 – Barge container "Jin Long 313" shipside to floating crane "Hong Li 900"
10.31 – Start discharging containers from bay 06
13.12 – Cargo operation stopped until new spreader supplied
13.20 – 4 more Stevedores onboard
13.30 – Resume discharging only for 20 minutes
14.55 – Floating crane "Da li hao" port side alongside-First line made fast
16.30 – Floating crane " Da li hao" made fast
17.40 – Barge " Jin Hong 313" away with 9 containers/Cargo operation temporarly stopped
22.24 – Floating crane "Da li hao"start discharging from bay 14

Day 7 – 24 May 2011

01.30 – M/v "Xin An Yuan 9" alongside stbd side crane/Resume discharging by stbd crane " Hong Li 900"
04.00 – Floating crane "Hong Li 900" temporarly stopped discharging operation
06.00 – Floating crane temporary stopped 'Da Li Hao' total disch. 34 containers
08.36 – 11stevedores off
08.42 – 11 stevedores onboard
10.17 – Small barge alongside
10.50- 3 Persons from Shanghai Salvage Company onboard
10.50- Start Sounding at Low Water
11.05- Ch.Off. on barge to take draft
11.30- Barge alongside for draft reading
13.45 – Start Ventilation of Ballast tank 5DBWBT (P)
16.30 – Port anchor ready to let go lowered 1 meter above the water
18.30 – Stop Pumping out fuel, valve closed
18.46 – Hose disconnected
20.35 – Bunker Barge 'HAI DA' cast off
21.28 – Bunker Barge 'XIN LONG ZOU 718' made fast all lines
21.32 – Container Barge' XIN AN YUAN 9' cast off in floating crane
22.40 - Floating Crane 'HONG LI 900' cast off

Day 8 – 25 May 2011

08.24 – Bunker barge 'Xin Long Zou 718 made fast
09.05 – Hose connected
09.08 – Start pumping out fuel
09.17 –China MSA boat alongside
10.08 – Headline of Floating crane 'Da li hao' cast off
10.18 – Divers boat alongside
10.31 – Tong Hai Shipping Barge alongside

10.54 – Floating Crane 'DA LI HAO' cast off
11.25 – Floating Crane start moving to starboard
11.20 – Inspection of cargo holds and bilges completed
12.25 – Start pump out ballast from TK. NO.1 center
15.20 – First line of floating crane 'DA LI HAO' made fast to starboard
15.41 – Floating crane 'DA LI HAO' made fast
16.44 – Start Unlashing
17.10 – Finished pumping out ballast tank no.1 Center
18.30 – Hook broke from sling use for container discharge
19.30 – Start Discharging Containers
19.50 – 12 stevedores off
19.55 – Stop pumping fuel
20.30 – Hose disconnected
21.32 – Bunker barge 'XIN LONG ZOU' cast off

Day 9 – 26 May 2011

00.35 – Port Wire rope of aft tug made fast 'DONG HAI JIU 113'
00.42 – Aft tug made fast TWO Wire Rope, 'DONG HAI JIU 113'
00.55 – Pump in aft peak void space with two pumps
02.10 – Stop discharge
02.30 – Tug Aft P/S made fast
02.35 – Tug Midships P/S made fast
02.37 – Tug Fwd P/S made fast
03.20 – Tug mid STB. Made fast
03.30 – Tug aft Stb. Quarter made fast
03.42 – Stand-by Engine
04.05 – Pilot onboard (2 pilots)
04.10 - Meeting with all the Crew
04.20 – Tug starboard bow made fast
04.28 – Pilot Door Starboard secured
04.32 – After Peak void space closed
04.36 – Both Anchors ready for let go
05.18 – Vessel refloating
05.21 – Start moving back
05.42 – Standby Anchors
05.53 – Drop Stbd. Anchor 4 shackles
06.10 –Aft Tug cast off
06.12 – All Tugs Cast off hten heaved up the anchor to change location.
07.24 – Let go Starboard Anchor 6 shackles on Deck Po. 24-20.61N 118-10.43E
07.48 – Finished with Engine
07.54 – Pilots off
11.30 - Inspection of bilges completed
14.12 – Bunker Barge 'XIN LONG ZOU 718' made fast
14.25 – Start Diving Inspection, Reported to Xiamen VTS
14.55 – Diving Inspection suspended due to strong current
15.05 – Hose connected
15.25 – Start bunkering (fuel transfer)
18.50 – Resumed Diving Operation

19.00 – Stop pumping fuel
19.10 - Hose disconnected
19.58 – Diving Operation suspended due to strong current
20.18 – Bunker BARGE 'XIN LONG ZOU 718' made fast
22.15 – Hose connected
22.35 – Start Pumping
22.55 – Stop pumping
23.45 – Resumed Pumping

Day 10- 27 May 2011

01.15 – Tug made fast, Start diving inspection
02.40 – Diving Inspection completed, Tug cast off
04.00 BV occasional survey completed. Class certificate revalidated with Visa No.1: "no damaged structures were found" .
06.54 – Stop pumping
07.22 – Hose disconnected
08.48 – During departure maneuver of the bunker barge the port bow of the barge hit the vessel's starboard side on a length of 10m about 9-10m above the water line, denting the hull between the bay 51 and 53 position lat: 24 20.43N; long: 118 10.41E
08.52 – Bunker barge 'HAI DA' cast off
09.00 – Inspected the location, no trace of pollution
16.00 – Hand over command to Captain SIKIC.
16.00 – Hand over command to Captain SIKIC.
On the 28th at 08.26lt heaved up the anchor and proceeded to Hong Kong. BOSP at 09.18 lt.
29th at 09.12 adrift waiting for berth clearance in Hong Kong vicinity – approx. 60 Nm east.

D.

m.v. CMA CGM LIBRA
Deck Log Book Extract
Covering 18th May – 26th May 2011
as prepared by the Average Adjusters

From Xiamen to Hong Kong

18th May	02.13 hrs	Pilot off
	02.35 hrs	Vessel running aground, listing to port 10
	02.36 hrs	Master contacted Xiamen VTS, SSE department Emergency Line
	04.09 hrs	Harbour master boat arrives and made round trip around the vessel to make soundings
	04.18 hrs	Harbour master on board
	04.42 hrs	3 tugs arrived and stand by No. 3, 4 and 15
	06.00 hrs	Harbour master off
	09.30 hrs	One pilot and 3 harbour masters on board
	11.17 hrs	Aft tug made fast No. 4
	11.18 hrs	Forward tug made fast No. 3 / Tug No. 15 for pushing only
	11:52 hrs	Ordered to make fast another tug to aft, center lead
	12.00 hrs	Slow ahead
	12:02 hrs	Permission from office to use the 4th tug
	12.08 hrs	Stop engine, slow astern, halt astern, med ship handover
	12:13 hrs	Full astern
	12.19 hrs	Stop engine / med ship
	12.24 hrs	Draft starboard side med ship
	12.34 hrs	Forward tug cast off
	12.35 hrs	Aft tugs cast off
	13.20 hrs	Pilot and officers / harbour master off
	23.10 hrs	2 M.S.A. inspectors disembarked
	24.00 hrs	Vessel still aground
19th May	02.20 hrs	Agent and representatives of company on board
	02.35 hrs	Agent off
	09.25 hrs	Harbour master disembarked, master on board
	09.45 hrs	Boat for pollution prevention "Tong Hai Shipping" made fast the oil spill boom
20th May	08.00 hrs	Commence diving operations
	16.25 hrs	Diving inspection completed
	17.55 hrs	Bunker barge "XIN ZHOU 718" alongside starboard side
	20.11 hrs	Hose connected
	20.25 hrs	Start pumping HSFO
	20.30 hrs	Stop pumping
	22.15 hrs	Hose disconnected

21st May	00.10 hrs	Barge "XING LONG ZHOU" alongside
	00.20 hrs	Barge "HAI DA 298" cast off
	00.50 hrs	Hose connected
	01.00 hrs	Start pumping
	10.30 hrs	Stop pumping out temporarily
	10.41 hrs	Hose disconnected from barge, bunker manifold valve closed
	10.45 hrs	7 Stevedores off
	10.48 hrs	8 Stevedores on
	14.15 hrs	Barge "HAI DA 768" alongside
	14.30 hrs	Hose connected
	14.35 hrs	Start pumping
	16.45 hrs	Floating crane "HONG LI 900" standing by alongside starboard side
22nd May	02.00 hrs	Stopped pumping
	02.24 hrs	Hose disconnected
	03.35 hrs	Barge "HAI DA 768" away
	05.10 hrs	Bunker barge "XING LONG ZHOU 718" made fast
	05.30 hrs	Start pumping
	09.09 hrs	Harbour master on board
	10.25 hrs	Start discharging of containers from bay 13(17-88)
	13.54 hrs	5 Tug boats arrived
	13.56 hrs	2 Pilots and 1 harbour master on board
	14.24 hrs	All tugs made fast
	14.44 hrs	All tugs started pulling
	15.48 hrs	Tugs stopped pulling
	16.10 hrs	All tugs casted off
	17.30 hrs	Bunker barge "HAI DA 898" made fast
	17.52 hrs	Oil boom made fast
	18.30 hrs	Start bunkering
	19.00 hrs	Stevedores off
	19.40 hrs	7 Stevedores on
23rd May	08.00 hrs	Bunkering in progress, floating crane alongside
	10.30 hrs	Start discharging containers Bay 06
	13.12 hrs	Discharging stopped temporarily
	13.30 hrs	Resumed discharging operations
	14.55 hrs	First line of floating crane "DA LI HAO" made fast
	16.30 hrs	Floating crane "DA LI HAO" made fast starboard side
	17.40 hrs	Barge "JIN HONG 313" away, cargo operations temporarily stopped
	18.42 hrs	Barge "XIN AN YUAN 9" alongside and cast to crane barge starboard side
	22.24 hrs	Crane barge "DA LI HAO" started discharging from bay 14

24th May	01.30 hrs	m.v. "XIN AN YUAN 9" alongside starboard side, resumed discharging by floating crane "HONG LI"
	06.00 hrs	Floating crane "DA LI HAO" operations stopped
	08.36 hrs	11 stevedores disembarked
	08.42 hrs	11 stevedores on board
	16.30 hrs	Port anchor ready to let go
	18.30 hrs	Stopped pumping
	18.46 hrs	Hose disconnected
	20.35 hrs	Bunker barge "HAI DA 898" cast off
	21.14 hrs	Bunker barge "XIN LONG ZOU 718" made fast first line
	21.28 hrs	Made fast all lines
	21.32 hrs	Container barge "XIN AN YUAN 9" cast off
	21.48 hrs	Bunker barge "XIN LONG ZOU" cast off
25th May	08.24 hrs	Bunker barge "XIN LONG ZOU 718" made fast, all lines
	09.05 hrs	Hose connected
	09.08 hrs	Start pumping out fuel
	10.54 hrs	Floating crane "DA LI HAO" cast off
	15.20 hrs	First line of floating crane "DA LI HAO" made fast
	15.41 hrs	Floating crane "DA LI HAO" made fast
	19.30 hrs	Started discharge of containers bay 13 / 15
	19.50 hrs	12 Stevedores off
	19.55 hrs	Stopped pumping out fuel
	20.20 hrs	16 stevedores on board
	20.30 hrs	Hose disconnected
	21.32 hrs	Bunker barge "XIN LONG ZOU 718" cast off
	21.38 hrs	Bunker barge "XIN LONG ZOU 718" made fast
26th May	00.42 hrs	Aft tug "DONG HAI JIU 113" made fast
	02.00 hrs	Stopped discharge
	02.35 hrs	Tug aft P/S made fast
		Tug midship P/S made fast
	02.37 hrs	Tug fwd P/S made fast
	03.20 hrs	Tug mid starboard made fast
	03.30 hrs	Tug aft starboard made fast
	03.42 hrs	Stand-by engine
	04.05 hrs	2 Pilots on board
	04.20 hrs	Tug starboard bow made fast
	04.28 hrs	Pilot door starboard side secured
	04.32 hrs	Aft peak void space closed
	04.36 hrs	Both anchors ready for let go
	04.42 hrs	All manning closed
	05.06 hrs	Half astern, engine running astern
	05.18 hrs	Vessel refloating
	05.21 hrs	Start moving back
	05.42 hrs	Stand-by anchors fwd
	05.53 hrs	Drop anchors starboard side, 4 shackles

06.10	hrs	Aft tug cast off
06.12	hrs	All tugs cast off
06.37	hrs	Anchor out of the water
07.24	hrs	Let go starboard anchor, 6 shackles in the water
07.48	hrs	Finished with engine
07.54	hrs	Pilots off
12.00	hrs	Vessel at anchor
14.12	hrs	Bunker barge “XIN LONG ZOU 718” made fast
14.25	hrs	Started diving inspection, reported to Xiamen VTS
14.55	hrs	Diving inspection suspended due to strong current
15.05	hrs	Hose connected
15.25	hrs	Start bunkering
18.00	hrs	Vessel at anchor, starboard side 5 shackles
18.44	hrs	Tug “XIA GANG ZOU HAO” made fast / bay 24 starboard side
18.50	hrs	Resumed diving operation
19.00	hrs	Stopped pumping
19.10	hrs	Hose disconnected
19.58	hrs	Diving operation stopped/suspended due to strong current
20.16	hrs	Barge “XIN LONGZOU 718” cast off
21.18	hrs	Bunker barge “HAI DA 768” made fast
22.15	hrs	Hose connected
22.35	hrs	Start pumping
22.55	hrs	Stopped pumping
23.45	hrs	Resumed pumping
24.00	hrs	Vessel anchor, 8 shackles on deck

* * * * *

E.

LOF 2011

LLOYD'S STANDARD FORM OF SALVAGE AGREEMENT

(Approved and Published by the Council of Lloyd's)

NO CURE - NO PAY

1. Name of the salvage Contractors: Shanghai Salvage Company (referred to in this agreement as "the Contractors")	2. Property to be salved: The vessel: "CMA CGM Libra" her cargo freight bunkers stores and any other property thereon but excluding the personal effects or baggage of passengers master or crew (referred to in this agreement as "the property")
3. Agreed place of safety: Xiamen, China	4. Agreed currency of any arbitral award and security (if other than United States dollars) United States Dollars
5. Date of this agreement 23rd May 2011	6. Place of agreement China
7. Is the Scopic Clause incorporated into this agreement? State alternative : Yes/No Yes	
8. Person signing for and on behalf of the Contractors Mr. Zhang Yi Signature:	9. Captain or other person signing for and on behalf of the property Signature:

A **Contractors' basic obligation:** The Contractors identified in Box 1 hereby agree to use their best endeavours to salve the property specified in Box 2 and to take the property to the place stated in Box 3 or to such other place as may hereafter be agreed. If no place is inserted in Box 3 and in the absence of any subsequent agreement as to the place where the property is to be taken the Contractors shall take the property to a place of safety.

B **Environmental protection:** While performing the salvage services the Contractors shall also use their best endeavours to prevent or minimise damage to the environment.

C **Scopic Clause:** Unless the word "No" in Box 7 has been deleted this agreement shall be deemed to have been made on the basis that the Scopic Clause is not incorporated and forms no part of this agreement. If the word "No" is deleted in Box 7 this shall not of itself be construed as a notice invoking the Scopic Clause within the meaning of sub-clause 2 thereof.

D **Effect of other remedies:** Subject to the provisions of the International Convention on Salvage 1989 as incorporated into English law ("the Convention") relating to special compensation and to the Scopic Clause if incorporated the Contractors services shall be rendered and accepted as salvage services upon the principle of "no cure - no pay" and any salvage remuneration to which the Contractors become entitled shall not be diminished by reason of the exception to the principle of "no cure - no pay" in the form of special compensation or remuneration payable to the Contractors under a Scopic Clause.

E **Prior services:** Any salvage services rendered by the Contractors to the property before and up to the date of this agreement shall be deemed to be covered by this agreement.

F **Duties of property owners:** Each of the owners of the property shall cooperate fully with the Contractors. In particular:

(i) the Contractors may make reasonable use of the vessel's machinery gear and equipment free of expense provided that the Contractors shall not unnecessarily damage abandon or sacrifice any property on board;

(ii) the Contractors shall be entitled to all such information as they may reasonably require relating to the vessel or the remainder of the property provided such information is relevant to the performance of the services and is capable of being provided without undue difficulty or delay;

(iii) the owners of the property shall co-operate fully with the Contractors in obtaining entry to the place of safety stated in Box 3 or agreed or determined in accordance with Clause A.

G **Rights of termination:** When there is no longer any reasonable prospect of a useful result leading to a salvage reward in accordance with Convention Articles 12 and/or 13 either the owners of the vessel or the Contractors shall be entitled to terminate the services hereunder by giving reasonable prior written notice to the other.

H **Deemed performance:** The Contractors' services shall be deemed to have been performed when the property is in a safe condition in the place of safety stated in Box 3 or agreed or determined in accordance with clause A. For the purpose of this provision the property shall be regarded as being in safe condition notwithstanding that the property (or part thereof) is damaged or in need of maintenance if (i) the Contractors are not obliged to remain in attendance to satisfy the requirements of any port or habour authority, governmental agency or similar authority and (ii) the continuation of skilled salvage services from the Contractors or other salvors is no longer necessary to avoid the property becoming lost or significantly further damaged or delayed.

I **Arbitration and the LSSA Clauses:** The Contractors' remuneration and/or special compensation shall be determined by arbitration in London in the manner prescribed by Lloyd's Standard Salvage and Arbitration Clauses ("the LSSA Clauses") and Lloyd's Procedural Rules in force at the date of this agreement. The provisions of the said LSSA Clauses and Lloyd's Procedural Rules are deemed to be incorporated in this agreement and form an integral part hereof. Any other difference arising out of this agreement or the operations hereunder shall be referred to arbitration in the same way.

J **Governing law:** This agreement and any arbitration hereunder shall be governed by English law.

K **Scope of authority:** The Master or other person signing this agreement on behalf of the property identified in Box 2 enters into this agreement as agent for the respective owners thereof and binds each (but not the one for the other or himself personally) to the due performance thereof.

L **Inducements prohibited:** No person signing this agreement or any party on whose behalf it is signed shall at any time or in any manner whatsoever offer provide make give or promise to provide or demand or take any form of inducement for entering into this agreement.

IMPORTANT NOTICES

1 **Salvage security.** As soon as possible the owners of the vessel should notify the owners of other property on board that this agreement has been made. If the Contractors are successful the owners of such property should note that it will become necessary to provide the Contractors with salvage security promptly in accordance with Clause 4 of the LSSA Clauses referred to in Clause I. The provision of General Average security does not relieve the salved interests of their separate obligation to provide salvage security to the Contractors.

2 **Incorporated provisions.** Copies of the applicable Scopic Clause, the LSSA Clauses and Lloyd's Procedural Rules in force at the date of this agreement may be obtained from (i) the Contractors or (ii) the Salvage Arbitration Branch at Lloyd's, One Lime Street, London EC3M 7HA.

3 **Awards.** The Council of Lloyd's is entitled to make available the Award, Appeal Award and Reasons on www.lloydsagency.com (the website) subject to the conditions set out in Clause 12 of the LSSA Clauses.

4 **Notification to Lloyd's.** The Contractors shall within 14 days of their engagement to render services under this agreement notify the Council of Lloyd's of their engagement and forward the signed agreement or a true copy thereof to the Council as soon as possible. The Council will not charge for such notification.

Tel.No. + 44(0)20 7327 5408/5407
Fax No. +44(0)20 7327 6827
E-mail: lloyds-salvage@lloyds.com
www.lloydsagency.com

15.1.08 3.12.24 13.10.26 12.4.50 10.6.53 20.12.67
23.2.72 21.6.80 5.9.90 1.1.95 1.9.2000 9.5.2011

F.

上海双希海事发展有限公司
SHANGHAI DOUBLE HOPE MARITIME DEVELOPMENT CO., LTD.

DH-T-(11)084

CARGO SURVEY ON M.V. "CMA CGM LIBRA"

Grounded off Port of Xiamen, China on May 18, 2011

THIS IS TO CERTIFY that the undersigned surveyor did, at the request of

ALBATROSS ADJUSTERS LIMITED

and on behalf of

THE GENERAL AVERAGE COMMUNITY

attend on board the captioned vessel and the open yard of Hai Run Container Terminal of Port Xiamen from May 25 to 27, 2011, for the purpose of carrying out a container discharge / storage survey, to ascertain whether any damage to the container / cargo loaded on the captioned vessel, who was alleged ground off Port of Xiamen, China on May 18, 2011.

Hereunder is the survey report.

I SHIP'S PARTICULARS

Ship's Name	:	CMA CGM LIBRA
Port of Registry	:	Valletta
Flag	:	Malta
IMO Number	:	9399193
Class	:	BV
Type of Ship	:	Container Ship
G.T. / N.T.	:	131,332 / 59,901
LOA / Breadth / Depth	:	363.61 / 45.66 / 29.74m
Date of Delivered	:	July 16th, 2010
Built by	:	Hyundai Heavy Industries Co., Ltd.
Owners	:	Snc Alize 1954 4 Quai d'Arenc 13002 Marseille
Managing Owner	:	CMA SHIPS 4 Quai d'Arenc 13002 Marseille

II SURVEY CIRCUMSTANCES

.1 Upon received survey instruction on late afternoon of May 24, 2011 and, understood that the subject vessel run aground off Xiamen and the rescue work was under going, then we hurried up to Xiamen by the air flight overnight.

.2 On the morning of May 25, we managed to get in touch with the local agent for dealing with the boarding pass matter, at the same time, it was acquired that the traffic boat was available to the grounded vessel that afternoon.

.3 So, after the boarding pass was available, we got on the traffic boat and try to get on board captioned vessel to learn about the relevant container / cargo discharging operation matter as soon as possible, but were refused by the representative of the ship owner when our getting at the shipside, and giving a alleged cause that either the local office of ship owner or the accident ship's Master received confirmation / instruction about our survey.

.4 On morning of May 26, it was reported from the local agent that the ship had been re-floated on the earlier morning, and we embarked on board successfully on that afternoon.

.5 We gave our greeting to Master and the Chief Mate, and the survey was carried out subsequently. It was reported that 63 containers were discharged till the time of the vessel re-floating and one of containers HDMU 6465780 sustained damaged during the container discharging operation as allegation.

.6 However, the Statement of Fact about the grounding and the Damage Report to the container HDMU 6465780 about the incident happened during cargo discharging operation were not issued by ship side, which contributed to the fatigue of the duty Master. Copy of draft of Cargo / Container Discharging Operation Record, not signed / stamped, were collected onboard.

.7 On the earlier morning of May 27, we gave our second attending to open yard of the Hai Run Container Terminal to check the unloaded 63 containers' condition.

.8 After completion our site survey, we flied back shanghai on the later afternoon of May 27.

III BACKGROUND

.1 According to the Letter of Protest issued by the ship's Master, it was noted that

The M.V. "CMA CGM LIBRA", while leaving the Xiamen port, fully and properly manned and in all respects in good sea worthy conditions, ran aground in an area of 30-40 meters charted depths (24°20.0'N / 118°09.5'E) at 0235 hrs (LT, the same to below) on May 18 after disembarking the pilot, listing to port.

.2 After the accident, some containers loaded in forward of the ship were set to discharge somehow to re-float the vessel helpfully.

.3 The discharging operation commenced at 1025 hrs of May 22, 2011 with the floating crane "Hong Li 900", and the floating crane "Da Li Hao" joined the discharging work at 1555 hrs of May 23, till the time of 1730 hrs the container barge "Jin Hong 313" left with 9 containers on board.

.4 The discharging work progressed intermittently due to the poor sea condition, and finished at 0210 hrs on May 26, with 63 containers discharging in total, consist of the 59-20f containers, 3-40f containers and, 1 empty 20f container, hereinto, 14 -20f containers loaded with dangerous cargo.

.5 Of the unloaded containers 8 were transported to the Hai Run Container Terminal by barge "Xin An Yuan 9" at the night of May 25, and the rest 46 transported by barge "Hai Gong 201" on the morning of the May 26.

IV SURVEY FINDINGS

On May 25 and 27, we attended on the open yard of the terminal to check the condition of the unloaded containers.

The containers was stored at two separated area of the open yard, i.e. the 14 containers contained dangerous cargos stored in the restriction area and the rest containers stacked on the open yard as the normal cargo. It was found that the foresaid containers were in general condition except for old wound / physical scratches in places viewed from the outside, and hereinto, some containers had fresh physically scratches and / or indented in places.

Detail condition of the unloaded 63 containers, upon our survey findings, listed as below:-

The containers, found with fresh physical scratches and / or indent, were highlighted in yellow color; while the containers laden with the dangerous cargo highlighted in orange color.

	Container	Position	External Condition
.1	CILU2701173	011388	In general condition
.2	CPIU1852452	031388	Empty, in general condition
.3	SVWU1800244	051188	In general condition
.4	SVWU1800162	051190	In general condition
.5	INKU2699244	060988	In general condition
.6	TOLU3636282	061388	In general condition
.7	CMAU9078956	061390	In general condition
.8	TGHU2672315	071188	In general condition
.9	TRLU3334734	071190	In general condition
.10	MOAU5805259	111590	In general condition
.11	DRYU2357068	111788	In general condition
.12	EISU3716220	111790	In general condition
.13	ECMU1621530	131186	In general condition
.14	CMAU1437941	131188	Left side panel indented slightly
.15	ECMU1283601	131282	In general condition
.16	ECMU2152226	131284	In general condition
.17	FCIU2031253	131286	In general condition
.18	ECMU1382918	131288	In general condition
.19	ECMU1772979	131386	Both left and right side panel indented slightly
.20	APZU3655356	131388	In general condition
.21	TOLU3417411	131488	In general condition
.22	GESU3043741	131586	Forward left side panel and door end scratched
.23	GLDU3892278	131588	In general condition
.24	ECMU1280562	131688	In general condition
.25	XINU1279987	131782	In general condition

	Container	Position	External Condition
.26	UNIU2050434	131784	In general condition
.27	DVRU1485110	131786	In general condition
.28	APZU3411684	131788	In general condition
.29	ECMU1109349	131882	In general condition
.30	ECMU1520909	131884	In general condition
.31	APZU3926632	131886	In general condition
.32	TCKU3559020	131888	In general condition
.33	GVCU2226123	151186	Front end wall scratched in places
.34	CMAU1191781	151188	In general condition
.35	XINU1540302	151282	Lower part of front end wall indented slightly
.36	FCIU2658433	151284	In general condition
.37	TGHU1385028	151286	In general condition
.38	APZU3007081	151288	In general condition
.39	ECMU2016889	151386	In general condition
.40	ECMU1330848	151388	In general condition
.41	APZU3639340	151488	In general condition
.42	FCIU4084782	151588	In general condition
.43	ECMU1784326	151688	Left side panel scratched
.44	CMAU1360285	151786	Middle of left side panel scratched
.45	GESU2620010	151788	In general condition
.46	CMAU1643259	151882	In general condition
.47	CMAU0190440	151884	In general condition
.48	CMAU1362307	151886	In general condition
.49	GLDU3257380	151888	In general condition
.50	CMAU0254289	111588	Right side panel near front end wall scratched
.51	ECMU1375776	131482	In general condition

	Container	Position	External Condition
.52	ECMU1598450	131486	In general condition
.53	BAFU8804026	131582	In general condition
.54	ECMU1844195	131584	In general condition
.55	IPXU3621423	131684	In general condition
.56	UXXU2449766	131686	In general condition
.57	BAFU8892500	151482	In general condition
.58	TASU9110060	151484	In general condition
.59	ECMU1614274	151486	In general condition
.60	ECMU1631688	151484	In general condition
.61	CLHU2386770	151584	In general condition
.62	ECMU1617859	151682	In general condition
.63	ECMU1685977	151686	In general condition

.64 During our onboard survey dated May 26, according to statement of the Chief Mate, it was told that the container HDMU 6465780 in position 141086 was damaged during the discharging operation, together with the Chief Mate, we checked the damage on site.

It was found that the container with a indent at the left side around 1.0-3.5 m off the door, the indent point was around 200-300 mm in deflection, the relevant roof protruded as well, but it was hard to check the detail damage due to being stacked at 3 height.

V RE-LOADING

It was acknowledged that:-

The total 63 unloaded containers from M.V. "CMA CGM LIBRA" from May 22 to 26, 2011 at the site of grounding / trans-shipped to / stored in Hai Run Container Terminal thereafter.

On May 30, 2011, all of the total 63 unloaded containers were re-loaded on board of M.V. "CGA CGM MUSCA" as normal cargo of container.

VI SURVEYOR'S COMMENTS

Based on our findings on site, we would forward our comments as following without prejudice:

- It was learnt / understood that in order to re-float the grounded vessel, together with the fuel oil transferring overboard, cargo of containers stowed on deck at forward part were discharged by floating cranes to decrease the ship's draft from May 22 to 26, 2011.

- Till the time of re-floating, total 63 containers discharged by the two floating cranes while total about 6,600 m/t of fuel oil transferred overboard to some tanker barges.

- According to the allegation of the vessel's Master and Chief Mate, all containers on board were all in general condition viewed from outside except container HDMU 6465780 in position 141086 was damaged during the discharging operation when the rescue work was under way.

- The unloaded containers well stored at the open yard of the Hai Run Container Terminal were also in general condition viewed from its outside except for scratches in places on surface by the time of our attending.

This report represents out finding at the time and place of inspection stated herein. Such inspection has been carried out and report issued to the best of our knowledge and ability without prejudice to interests of any concerned.

SHANGHAI, MAY 31, 2011
NOTARIAL SURVEYING DEPARTMENT
SHANGHAI DOUBLE HOPE MARITIME DEVELOPMENT CO., LTD.

MING GUO'HUA
Staff Surveyor

ATTACHMENT

1.	Copy of Ship's Particular	(1 page);
2.	Copy of Letter of Protest	(1 page);
3.	Copy of Statement of Fact before grounding	(2 pages);
4.	Copy of Draft Cargo Operation Record	(4 pages);
5.	Copy of Container Lists	(2 pages);
6.	27 Pictures	(9 pages).

G.

STAEMENT OF FACTS

CMA CGM LIBRA

DRY DOCKING

26/09/2011

12.06 EOSP
13.24 POB
14.48 1ST LINE ASHORE
15.12 FWE. ARRIVAL YANGSHAN PORT

27/09/2011

03.24 SBE
03.58 ALL LINES CASTED OFF
04.54 PILOT OFF
11.06 DROPED P/S ANCHOR IN SHANGHAI ANCHORAGE

28/09/2011

05.40 SBE
06.10 ANCHOR HOME
07.45 POB
11.42 DROPED ANCHOR IN CHANGXING DAO SHIPYARD ANCHORAGE
12.58 ANCHOR HOME
13.16 1ST LINE ASHORE
13.48 FWE. ALONGSIDE CHANGXING DAO SHIPYARD

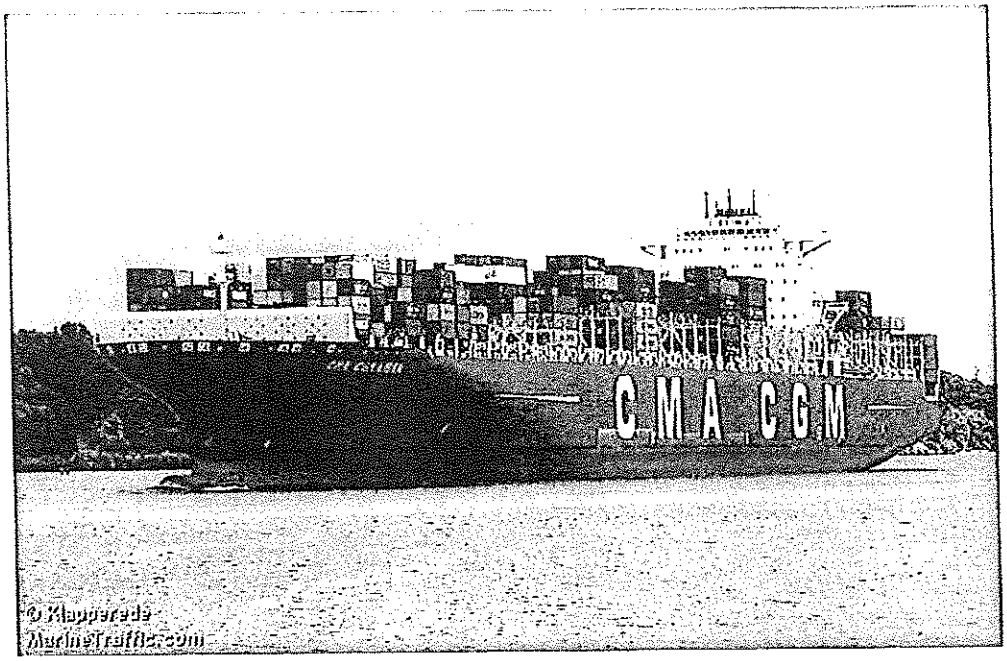
29/09/2011

08.54 SBE
09.06 POB
09.44 ALL LINES CASTED OFF
10.18 DROPED ANCHOR IN CHANGXING DAO SHIPYARD ANCHORAGE
22.45 POB

30/09/2011

00.21 ANCHOR HOME
00.42 BOW INSIDE THE DOCK
00.50 1ST LINE ASHORE
02.00 TOUCHING THE DOCK BOTTOM F&A

H.



DAMAGE SURVEY REPORT
CMA CGM LIBRA

Grounding off Xiamen

IMO no: 9399193

Damage date: 2011-05-18

Casualty id: 1/2011/0566

This is to certify that the undersigned surveyor representing The Swedish Club, surveyed the above mentioned vessel in CSI, Changxing Island on September 30th 2011 for purpose of ascertaining the cause and extent of damage alleged to have been sustained at the grounding off Xiamen, China on 18th May 2011.

SURVEY SUMMARY

Vessel arrived date:	2011-09-28	From:	Yangshan
Sailed date:	2011-10-03	To:	Dalian
Average repairs commenced date:	2011-09-30	Completed date:	2011-10-03
Owner's work commenced date:	2011-09-30	Completed date:	2011-10-01
Vessel dry-docked date:	2011-09-30	Undocked date :	2011-10-03

Time for discharging or loading while effecting average repairs: Nil

The casualty/casualties solely caused the call at the yard: **Yes**

If carried out separately, the work involved would have required the following time:

Time (days)	Total	Whereof in dry-dock
Average repairs	4	4
Owner's work	2	2
Total		

Cost allocation	Amount (kUSD)
Average repairs	Est. 300
Owner's work	
General expenses	
Overtime	

TABLE OF CONTENTS

1 PARTICULARS 4
2 ATTENDING 4
3 NARRATIVE 4
4 SEQUENCE OF EVENTS 4
5 SURVEY FINDINGS 6
6 CAUSE OF DAMAGE 6
6.1 Owner's allegation 6
6.2 Surveyor's comments 6
7 CLASS STATUS 6
8 DAMAGE REPAIRS 6
8.1 Tender procedures 6
8.2 Average repairs 6
8.3 Temporary repairs/Voyage repairs/Deferred repairs 7
8.4 Owners' work 7
9 CONCLUSION 7
10 ENCLOSURES 7

1 PARTICULARS

Ship's name.....: CMA CGM Libra

Port of Registry.....: Valetta

Built.....: 2009

Builder.....: HHI Co Ltd, South Korea

Class.....: Bureau Veritas

Ship type.....: Container

GT.....: 131 332

NT.....: 59 901

DW.....: 131 332

Last docking.....: 2009

Last bottom painting.....: 2009

Place and date of last SS.....: NA

Place of damage survey.....: CSI, Changxing Island China

Date of damage survey.....: 2011-09-30

2 ATTENDING

Alain Lemanger	CMA Ships
Z.D. Chen	Hempel
Claes Åman	The Swedish Club

3 NARRATIVE

The vessel departed Xiamen in loaded condition on 18th May 2011 at 01.09 hrs.

The pilot was dropped at 02.13 hrs and the vessel proceeded to sea under the Master's directions.

The vessel ran aground at 02.35 hrs in position 24.20.00 N and 118.09.50 E.

The Master notified the owners and VTIS Xiamen of vessel's situation at 02.36 hrs.

4 SEQUENCE OF EVENTS

2011-05-18 (02.35 LT)

The vessel ran aground off Xiamen shortly after the disembarkation of the pilot.

No evidence of water ingression into ballast tanks and void spaces.

2011-05-21

Bunker transfer from CMA CGM Libra commenced. The bunker transfer was completed on 25th May and a total of 6595 MT was transferred from the vessel to the bunker fuel tankers.

2011-05-24

By the 24th May, about 49 containers with an estimated weight of 833 MT had been discharged.

2011-05-26

After several failed refloating attempts made since the date of grounding, the vessel was finally refloated on 26th May at 05.21 hrs.
After confirmation of a successful refloating, the vessel was moved to a deep water location under pilot direction and dropped anchor at 07.24 hrs.

2011-05-27

The underwater part of the vessel was examined by a class approved diving company and no structural damage and/or damage to rudder and propeller were recorded.
Several areas with various degree of damage to the hull coating were noted.

2011-06-15 (Grounding at Jeddah – New occurrence)

Vessel ran "smoothly" aground whilst manoeuvring to port.
Vessel was safely berthed with assistance of 3 additional tugs.
Due to poor visibility, the underwater survey was postponed until vessel's arrival at Malta.

2011-06-20

Underwater survey carried out at Malta. The survey revealed several large areas where the coating including the primer was scraped off. No indents were found at the survey.
Photos from the survey are enclosed to this report.

2011-07-07

The owner advised that they are considering to dry-dock the vessel due to the extent of damage to the hull coating caused by the grounding off Xiamen in May 2011.

2011-09-28

The vessel was safely moored at CSI shipyard.

2011-09-30

The vessel enters the floating dock. (1035 TEUs onboard)

Bottom survey and repairs commence.

5 SURVEY FINDINGS (CSI Shipyard)

On 30th September 2011, a bottom survey was carried out with representatives from the owners, paint manufacturer, shipyard and hull underwriters in attendance.

The survey revealed large areas at the forward part of the flat bottom and vertical sides where the coating was damaged/scored/scratched and rusty to such an extent that sandblasting and re-coating was deemed necessary in order to restore the coating to the state prior the grounding incident off Xiamen

At the completion of the bottom survey owners, paint manufacturer, shipyard and hull underwriters discussed and agreed to the full extent of the damaged areas requiring sandblasting and painting.

For details of the agreed areas, see the signed agreement which is enclosed to this report.

6 CAUSE OF DAMAGE

6.1 Owner's allegation

No formal allegation has been presented by the owners.

6.2 Surveyor's comments

Comments will be given when owners' formal allegation is at hand.

7 CLASS STATUS

The class was not in attendance at the repairs.

8 DAMAGE REPAIRS

8.1 Tender procedures

A quotation from China Shipping Industry is enclosed to this report.

8.2 Average repairs.

See service report issued by Hempel China and enclosed to this report.

8.3 Temporary repairs/Voyage repairs/Deferred repairs

NA

8.4 Owners' work

Repair to one "chipped" blade tip of the bow thruster.

Surface preparation and painting at various locations of the B/T. (SA 2=2% SA 1=2%)

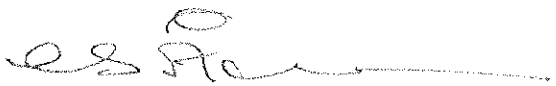
Surface preparation and painting of eroded areas at the rudder.

9 CONCLUSION

Subject to adjustment under the relevant policy.

Gothenburg 3 October 2011

The Swedish Club



Claes Åman

10 ENCLOSURES

Statement of facts	X
Hempel – service report	X
Hempel – paint specification	X
Agreement blasting/painting	X
Underwater survey (Xiamen)	X
Underwater survey (Malta)	X
Damage report (BV)	X
Letter of confirmation	X
Quotation	X
Repair schedule	X
Crew list	X
Photographs	X

I.

N.SHIPLEY & CO. LTD

SHIP SALE & PURCHASE BROKERS AND SHIP VALUERS

SHIP VALUATION

Albatross Adjusters Limited.,
3rd Floor Protopapas Building
23 Spyros Kyprianou Avenue
Mesa Geitonia
4003 LIMASSOL
Cyprus

21st October, 2011

Attention: B. Fischer Esq.,
Our Ref: 1365/2011/07

Dear Sirs,

"CMA CGM LIBRA"
(Container Vessel)

About 128.760 dwt.
Built 2009 in South Korea
About 11400 teus
MAN-B&W main engine of 97999 bhp

As requested we have carefully considered this Vessel's sound value, in good and seaworthy condition and free of long-period charter commitments, as at the end of June 2011.

In our opinion the Vessel's sound value at the date in question was approximately:

United States $120.000.000.-

Yours faithfully
for **N.SHIPLEY & CO LTD.**

N. Shipley

This value is given subject to the conditions overleaf

Clinton House, 27 Lower Green Road, Esher, Surrey KT10 8HE, England
Telephone: 0208 398 5240 ~ Email: nshipley@dsl.pipex.com

N. SHIPLEY & CO LTD ~ REG NO 2205105 ~ REG OFFICE: 27 Lower Green Road, Esher, Surrey KT10 8HE

J.

SETTLEMENT AGREEMENT

"CMA CGM LIBRA"

THIS AGREEMENT is made the 27th day of February 2014.

BETWEEN:

(1) SHANGHAI SALVAGE COMPANY of 1426 Yang Shu Pu Road, Shanghai, People's Republic of China (hereafter "the Contractors")

AND

(2) The Owners of the "CMA CGM LIBRA" (hereafter "the Owners")

WHEREAS:

(A) The "CMA CGM LIBRA" (hereafter "the Vessel") grounded on departure from the port of Xiamen on or about the 18th May 2011.

(B) The Owners of the Vessel entered into a Lloyd's Open Form of Salvage Agreement (LOF) 2011 (SCOPIC incorporated but not invoked) with a side letter dated the 23rd May 2011(hereafter "the LOF") on behalf of the Vessel her bunkers and stores, container shells and cargo (hereafter "the Salved Property").

(C) The Contractors rendered salvage services under the LOF to the Salved Property and safely redelivered her on refloating on the 26th May 2011 (hereinafter the Salvage Services).

(D) The Contractors and the Owners wish to settle all claims between the Contractors and the owners of the Salved Property arising under the LOF.

IT IS HEREBY AGREED AS FOLLOWS:

1 The Owners will pay to the Contractors on behalf of the Salved Property the sum of US$ 9,500,000 (United States Dollars nine million five hundred thousand) representing the aggregate of the agreed amount of the global salvage claim, interest on same at the rate of 7.4% per annum from the 26th

May 2011 (date of termination of the salvage services) until the date of signing this agreement, currency correction, uplift, and the Contractors' standard recoverable costs (including the Council of Lloyd's and Arbitrator's fees, if any) (the "Settlement Sum").

2 Payment of the Settlement Sum is paid by the Owners and accepted by the Contractors in full and final settlement of all claims arising between the Contractors and the owners of the Salved Property in respect of the Salvage Services rendered to the Salved Property by the Contractors. The Contractors expressly agree not to pursue any claim for salvage or other costs or expenses from any other owners of property on board the Vessel and hereby release Owners and all Salved Property from all and any liability under the LOF or otherwise at law in respect of the Salvage Services.

3 The Settlement Sum is to be paid, free of all bank charges whatsover, within 28 calendar days hereof to the following bank account:

Bank: China Merchants Bank H.O. Shenzhen, China
Address: China Merchants Bank Tower No.7088, Shennan Boulevard, Shenzhen, China
Account Number: 214080237210002
Swift Code: CMBCCNBS
Beneficiary: Shanghai Salvage Co.

4 If the Settlement Sum is not paid within the said 28 calendar days interest will run on any amount outstanding at the rate of 8% per annum pro rata from the date due until the date of payment.

5 On signing this Agreement the Contractors undertake to provide a letter of indemnity to the Owners in accordance with Clause 17 of the LSSA Clauses in the form of the standard draft (ASG5) currently agreed by the London Admiralty Solicitors Group (ASG).

6 On payment of the Settlement Sum the Contractors agree to return the securities provided on behalf of the Owners and other Salved Property and to inform Lloyds Salvage Arbitration Branch that the matter is closed.

7 This Agreement shall be governed by English law and any dispute arising shall be submitted to the exclusive jurisdiction of the High Court in London. The Parties irrevocably agree that Messrs Reed Smith and Holman Fenwick Willan

are authorised to accept service of any proceedings hereto on behalf of Owners and Contractors respectively.

Signed by ..... Zhang Yi

Zhang Yi, Contracting Manager

Authorised signatory of

Shanghai Salvage Company

Signed by .....

[insert the name/position of the signatory]

CMA CGM FALID T. SALEM
Executive Officer
Authorised signatory of the Owners

K.

HULL AND MACHINERY INSURANCE POLICY COVER NOTE

(Summary, only reproduced in version for Shipowners and Hull Underwriters)

BLANK PAGE

PART THREE CLAIM CALCULATION

I. CONTRIBUTORY INTERESTS AND VALUES

A.	**The Vessel**				
	Sound market value as at end of June 2011, as per Valuation Certificate (see Document I)			USD	120.000.000,00
	Less:- Cost of permanent casualty repairs as per the relevant Adjustment of Particular Average			- ' -	(385.513,00)
	Contributory Value of the Vessel			USD	119.614.487,00
B.	**The Cargo incl. Freight**				
	Value of 4.961 consignments of general cargo stowed in 5.983 containers, as shown in detail in Section IV.	USD	367.418.702,00		
	N.B. The value of 2 containers is included in the above cargo				
	Contributory Value of the Cargo			- ' -	367.418.702,00
C.	**The Containers**				
	Value of 5.981 container boxes, as shown in detail in Section IV.	USD	14.315.119,00		
	N.B. The value of 2 Shippers' own containers is included in the value of cargo				
	Contributory Value of the Containers			- ' -	14.315.119,00
D.	**The Bunkers**				
	On board at the time of the General Average act and remaining on board upon termination of the adventure, as follows: -				
	912,3 mt LSHFO at USD 663,00 per mt	USD	604.854,90		
	Add:- Discharged into barges after grounding and not reloaded on the vessel after refloating				
	2.248,4 mt HFO at USD 581,00 per mt	- ' -	1.306.320,40		
		USD	1.911.175,30		
	Less:- Bunkers that would have been consumed during the remainder of the voyage				
	458,2 mt HFO at USD 581,00 per mt	- ' -	(266.214,20)		
		USD	1.644.961,10		
	Add:- Made good in General Average	- ' -	30.734,90		
		USD	1.675.696,00		1.675.696,00
	Total Contributory Values			USD	503.024.004,00

II. GENERAL AVERAGE EXPENDITURE AND ALLOWANCES

As per documentation submitted by the vessel's Managing Owners, CMA SHIPS SA, Marseille and other Parties concerned, incl. Hull & Machinery Underwriters

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD				
		A. Salvage Remuneration and Costs		
		Shanghai Salvage Company		
9.502.385,22	A1	For salvage services rendered to the vessel, her cargo, containers and bunkers, carried out under a "Lloyd's Open Form 2011" (LOF 2011) agreement dated 23.05.2011. The vessel grounded off Xiamen on 18.05.2011. Following unsuccessful attempts to refloat the vessel including deballasting, discharge of bunkers and with assistance of tugs, the Shipowners entered into a LOF 2011 contract with Shanghai Salvage Company. Discharge of 63 containers was undertaken and with assistance of tugs, the vessel was refloated on 26.05.2011. Parties concerned negotiated amicable settlement of Salvors remuneration and costs in February 2014, to be paid to Salvors, as follows:-		
		Basic remuneration, incl. interest, currency correction, uplift and the Contractors' standard recoverable costs (incl. the Council of Lloyd's and Arbitrator's fees, if any)	USD	9.500.000,00
		Paid with, incl. bank charges	USD	9.502.385,22
		Adjusters' Note Full and final settlement of the salvage claim has been effected by Vessel's Interests on 24th March 2014. The salvage expenditure incurred is allowed in General Average in terms of Rule VI of the York-Antwerp Rules 1974/1990 and 1994, please refer to the Section - Data for General Average (page 9) of this Adjustment.		
9.502.385,22		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
		9.502.385,22
USD	0,00	9.502.385,22

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 9.502.385,22		brought over		
		Reed Smith LLP, London		
279.705,56	A2	Fees and disbursements of Lawyers representing Shipowners and their Underwriters in connection with the salvage and general average aspect of the case as follows:-		
	a	Invoice No. 2141313, dated 30 June 2011 Professional charges and disbursements during the period of 24.05 - 17.06.2011 - GBP 15.887,54		
		Paid and exchanged with	USD	25.955,49
	b	Invoice No. 2158260 dated 17 August 2011 Professional charges during the period of 04.07 - 31.07.2011 - GBP 2.893,00		
		Paid and exchanged with	- ' -	4.716,05
	c	Invoice No. 2188101 dated 31 October 2011 Professional charges during the period of 28.07 - 30.09.2011 - GBP 2.500,00		
		Paid and exchanged with	- ' -	4.016,27
	d	Invoice No. 2202922 dated 30 November 2011 Professional charges and disbursements during the period of 06.10 - 22.11.2011 - GBP 8.650,55		
		Paid and exchanged with	- ' -	13.424,20
	e	Invoice No. 2235774 dated 29 February 2012 Professional charges during the period of 01.12.2011 - 17.02.2012 - GBP 2.310,00		
		Paid and exchanged with	- ' -	3.614,78
	f	Invoice No. 2248721 dated 31 March 2012 Professional charges during the period of 28.02 - 21.03.2012 - GBP 6.207,00		
		Paid and exchanged with	- ' -	9.889,11
9.782.090,78		carried over	USD	61.615,90

	REMAINDER	GENERAL AVERAGE
	USD	USD
	0,00	9.502.385,22
	1.534,37	24.421,12
		4.716,05
		4.016,27
	4.096,84	9.327,36
		3.614,78
		9.889,11
USD	5.631,21	9.558.369,91

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 9.782.090,78		brought over	USD	61.615,90
	g	Invoice No. 2260665 dated 30 April 2012 Professional charges and disbursements during the period of 27.03 - 17.04.2012 - GBP 12.125,00		
		Paid and exchanged with	- ' -	19.560,61
	h	Invoice No. 2275115 dated 11 June 2012 Professional charges and disbursements during the period of 25.04 - 31.05.2012 - GBP 9.031,00		
		Paid and exchanged with	- ' -	14.161,93
	i	Invoice No. 2294417 dated 31 July 2012 Professional charges and disbursements during the period of 01.06 - 09.07.2012 - GBP 11.000,00		
		Paid and exchanged with	- ' -	17.280,59
	j	Invoice No. 2332358 dated 31 October 2012 Professional charges and disbursements during the period of 16.08 - 30.10.2012 - GBP 15.761,01		
		Paid and exchanged with	- ' -	23.970,11
	k	Invoice No. 2387566 dated 25 March 2013 Professional charges during the period of 30.10.2012 - 28.02.2013 - GBP 9.942,00		
		Paid and exchanged with	- ' -	15.141,85
	l	Invoice No. 2414034 dated 31 May 2013 Professional charges during the period of 04.03 - 28.05.2013 - GBP 10.000,00		
		Paid and exchanged with	- ' -	16.485,34
	m	Invoice No. 2463581 dated 30 September 2013 Professional charges and disbursements during the period of 29.05 - 25.09.2013 - GBP 11.717,55		
		Paid and exchanged with	- ' -	18.838,05
9.782.090,78		carried over	USD	187.054,38

	REMAINDER	GENERAL AVERAGE
	USD	USD
	5.631,21	9.558.369,91
	279,83	19.280,78
		14.161,93
	5.916,25	11.364,34
	11.985,06	11.985,05
	7.570,92	7.570,93
	8.242,67	8.242,67
	9.419,03	9.419,02
USD	49.044,97	9.640.394,63

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 9.782.090,78		brought over	USD	187.054,38
	n	Invoice No. 2476512 dated 26 October 2013 Professional charges during the period of 30.09 - 22.10.2013 - GBP 1.587,00		
		Paid and exchanged with	- ' -	2.550,61
	o	Invoice No. 2491079 dated 29 November 2013 Professional charges during the period of 06 - 15.11.2013 - GBP 3.800,00		
		Paid and exchanged with	- ' -	6.215,02
	p	Invoice No. 2515314 dated 31 January 2014 Professional charges and disbursements during the period of 18.11.2013 - 27.01.2014 - GBP 24,952,95		
		Paid and exchanged with	- ' -	40.961,10
	q	Invoice No. 2537642 dated 31 March 2014 Professional charges and disbursements during the period of 27.01 - 25.03.2014 - GBP 22.824,17		
		Paid and exchanged with	- ' -	38.304,01
	r	Invoice No. 2562097 dated 31 May 2014 Professional charges and disbursements during the period of 01.04 - 28.05.2014 - GBP 2.750,00		
		Paid and exchanged with	- ' -	4.620,44
			USD	279.705,56
		Reed Smith Richards Butler, Hong Kong		
50.243,45	A3	Fees and disbursements of Lawyers representing Shipowners and their Underwriters in connection with the salvage and general average aspect of the case as follows:-		
	a	Invoice No. 151820 dated 16 July 2011 Professional charges and disbursements during the period of 18.05 - 13.07.2011 - HKD 363.630,00		
		Paid and exchanged with	USD	46.595,50
9.832.334,23		carried over	USD	46.595,50

	REMAINDER	GENERAL AVERAGE
	USD	USD
	49.044,97	9.640.394,63
	1.275,30	1.275,31
	2.567,78	3.647,24
	405,46	40.555,64
	1.342,58	36.961,43
	3.116,11	1.504,33
	23.297,74	23.297,76
USD	81.049,94	9.747.636,34

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 9.832.334,23		brought over	USD	46.595,50
	b	Invoice No. 154264 dated 26 September 2011 Professional charges and disbursements during the period of 15.07 - 21.09.2011 - HKD 22.929,30		
		Paid and exchanged with	- ' -	2.947,69
	c	Invoice No. 5514797 dated 27 March 2014 Professional charges and disbursements during the period of 26.09.2012 - 07.11.2013 - HKD 5.428,00		
		Paid and exchanged with	- ' -	700,26
			USD	50.243,45
		Salvage Representation Costs by Cargo Representatives		
85.650,00	A4	Fees in connection with the salvage aspect, incl. attendance to meetings in London between Cargo Representatives and Shipowners and their legal Representatives, co-ordinating aspects related to the salvage claim, as agreed by Cargo Representatives, as follows: -		
		Waltons & Morse LLP, London 672 Bs/L @ USD 50,00	USD	33.600,00
		Clyde & Co. LLP, London 429 Bs/L @ USD 50,00	- ' -	21.450,00
		W K Webster & Co. Ltd., London 242 Bs/L @ USD 50,00	- ' -	12.100,00
		Xchanging Claims Services Limited 166 Bs/L @ USD 50,00	- ' -	8.300,00
		W.E. Cox Claims Group (Europe) Limited 117 Bs/L @ USD 50,00	- ' -	5.850,00
		Atlantis International Services N.V. 36 Bs/L @ USD 50,00	- ' -	1.800,00
		Dolphin Maritime & Aviation Services Limited 34 Bs/L @ USD 50,00	- ' -	1.700,00
		Roose+Partners, London 17 Bs/L @ USD 50,00	- ' -	850,00
			USD	85.650,00
9.917.984,23		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	81.049,94	9.747.636,34
	2.947,69	
		700,26
		85.650,00
USD	83.997,63	9.833.986,60

TOTAL	VOU-CHER	SPECIFICATION OF COSTS				
USD 9.917.984,23		brought over				
		London Offshore Consultants Pts. Ltd., Singapore				
113.718,95	A5	Fees and disbursements of naval architects appointed to assist during the refloating attempts and to advise during the salvage operations, as follows: -				
	a	Invoice No. 5843/11 dated 26 July 2011 Attendance on site in connection with salvage operations between 18 - 28.05.2011, 11 days at SGD 3.500,00 per day Professional fees, 11 hours at SGD 437,50 per hour Expenses			SGD - ' - - ' - SGD	38.500,00 4.812,00 10.815,00 54.127,00
		Paid and exchanged with			USD	44.793,69
	b	Invoice No. 5845/11 dated 26 July 2011 Various calculations, incl. tank capacities, vessel's draught, ground reaction, 58 hours at SGD375,00 per hour	SGD	21.750,00		
		Attendance on site, 2,5 days at SGD3.000,00 per day	- ' -	7.500,00		
		Expenses	- ' -	3.023,00		
			SGD	32.273,00		
		Paid and exchanged with			- ' -	26.708,05
	c	Invoice No. 5920/11 dated 17 August 2011 Meeting with Donghai in connection with tugs / fuel barge costs	SGD	24.062,00		
		Expenses	- ' -	2.683,00		
			SGD	26.745,00		
		Paid and exchanged with			- ' -	21.086,31
10.031.703,18		carried over			USD	92.588,05

	REMAINDER	GENERAL AVERAGE
	USD	USD
	83.997,63	9.833.986,60
USD	83.997,63	9.833.986,60

TOTAL	VOU-CHER	SPECIFICATION OF COSTS				
USD 10.031.703,18					USD	92.588,05
		brought over				
	d	Invoice No. 5962/11 dated 19 September 2011				
		Professional fees on 15.08 and 19.08.2011	SGD	875,00		
		Expenses	- ' -	734,00		
			SGD	1.609,00		
		Paid and exchanged with			- ' -	1.264,07
	e	Invoice No. 6041/11 dated 31 October 2011				
		Attendance to meeting at Donghai Rescue Bureau Ministry of Transport on 08 - 09.08.2011	SGD	930,00		
		Expenses	- ' -	30,00		
			SGD	960,00		
		Paid and exchanged with			- ' -	754,54
	f	Invoice No. 6680/12 dated 28.08.2012				
		Professional fees during the period betweeen 13.03 - 11.04.2012 for update on refloating calculation, draught readings, sea bed study, etc.	SGD	23.375,00		
		Paid and exchanged with			- ' -	19.112,29
					USD	113.718,95
		The Swedish Club, Gothenburg				
105.499,20	A6	Travelling expenses of Leading Hull Underwriters between May 2011 and February 2014 for meetings in Marseille, London and Shanghai with Shipowners, Solicitors and Salvors, Shanghai Salvage, in connection with the submission of satisfactory salvage security, salvage negotiations and settlement of the salvage award, as follows: -				
	a	Meetings in Marseille	SEK	98.934,50		
		Paid and exchanged with			USD	15.035,72
10.137.202,38		carried over			USD	15.035,72

	REMAINDER	GENERAL AVERAGE
	USD	USD
	83.997,63	9.833.986,60
		113.718,95
	5.011,91	10.023,81
USD	89.009,54	9.957.729,36

TOTAL	VOU-CHER	SPECIFICATION OF COSTS				
USD 10.137.202,38		brought over			USD	15.035,72
	b	Meetings in London	SEK	21.762,50		
		Paid and exchanged with			- ' -	3.294,59
	c	Survey in China, Sept./Oct. 2011	SEK	43.594,00		
		Paid and exchanged with			- ' -	6.521,27
	d	Meeting in China, Feb. 2014	SEK	36.165,00		
		Paid and exchanged with			- ' -	5.647,62
		Miscellaneous				
		Leading Hull Underwriters' time, trouble and miscellaneous expenses directly connected to the Salvage aspect, such as for their Representatives' attendance of various meetings in Marseille, London and Shanghai, as well as conducting numerous telephone calls and conferences with the Shipowners, the appointed Solicitors and the Average Adjusters			- ' -	24.000,00
					USD	54.499,20
	e	**Bail Fee**				
		Bail fee for security provided to Salvors in the amount of USD5.100.000 in respect of the estimated salved value of Vessel, Bunkers and Stores			- ' -	51.000,00
					USD	105.499,20
		Zurich Insurance plc, Frankfurt				
173.591,67	A7	Premium for Bond issued in favour of The Swedish Club in the amount of USD11.900.000, in respect of the estimated salved value of Cargo				
		Premium at 0,50% per annum for the period 31.05.2011 - 30.04.2014 (35 months)			USD	173.541,67
		Issue fee			- ' -	50,00
					USD	173.591,67
10.310.794,05		carried forward to pages 89/90				

	REMAINDER	GENERAL AVERAGE
	USD	USD
	89.009,54	9.957.729,36
		3.294,59
	6.521,27	
		5.647,62
	12.000,00	12.000,00
		51.000,00
		173.591,67
USD	107.530,81	10.203.263,24

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD				
		B. Expenditure in China		
		China Certification & Inspection Group Xiamen Co., Ltd		
2.107,49	B1	Inspection Certificate of fuel weight from 26 - 31.05.2011	CNY	13.635,00
		Paid and exchanged with	USD	2.107,49
		China Ocean Shipping Agency Xiamen		
1.592,02	B2	Agency fees	CNY	3.000,00
		Service fees from 18 - 27.05.2011	- ' -	4.300,00
		Vehicle from 18 - 27.05.2011	- ' -	3.000,00
			CNY	10.300,00
		Paid and exchanged with	USD	1.592,02
		CMA CGM Xiamen		
642,23	B3	Various consumable supplies purchased in relation to the salvage services rendered to the vessel, including stationery, sim cards, working clothes etc.	CNY	4.155,70
		Paid and exchanged with	USD	642,23
		Putian Haishen Shipping Co., Ltd		
6.414,45	B4	Container barge rental for 1,5 days, including fuel	CNY	41.500,00
		Paid and exchanged with	USD	6.414,45
10.756,19		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
		2.107,49
		1.592,02
		642,23
		6.414,45
USD	0,00	10.756,19

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 10.756,19		brought over		
		Shanye Marine Services Co., Ltd		
20.866,30	B5	Underwater survey on 20.05.2011	CNY	45.000,00
		Underwater survey on 26/ 27.05.2011 after refloating	- ' -	90.000,00
			CNY	135.000,00
		Paid and exchanged with	USD	20.866,30
		Adjusters' Note The underwater survey fees after refloating constitute an item for the Particular Average claim under the vessel's Hull & Machinery Policy.		
		Xiamen International Port Co. Ltd		
3.019,42	B6	Reloading of containers after refloating on 31.05.2011, on CMA CGM MUSCA	CNY	19.534,97
		Paid and exchanged with	USD	3.019,42
		Adjusters' Note The costs are allowed in General Average against saved reloading costs on the original vessel.		
		Xiamen Ocean Shipping Tally Co., Ltd		
2.131,31	B7	Container discharge from C.C. LIBRA to barge	CNY	7.495,50
		Water and road transportation	- ' -	1.515,00
		Documentation fees	- ' -	384,60
		Maritime affairs surcharge	- ' -	792,00
		Accommodation	- ' -	3.600,00
			CNY	13.787,10
		Paid and exchanged with	USD	2.131,31
36.773,22		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	0,00	10.756,19
	13.910,87	6.955,43
		3.019,42
		2.131,31
USD	13.910,87	22.862,35

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 36.773,22		brought over		
		Xiamen Penavico Customs Broker Co., Ltd		
772,82	B8	Agency fee for inspection certificate of fuel weight	CNY	5.000,00
		Paid and exchanged with	USD	772,82
		Xiamen Penavico Navigation Co., Ltd		
2.768,33	B9	Agency fees in connection with crew exchange, visas etc.	CNY	17.910,49
		Paid and exchanged with	USD	2.768,33
		Adjusters' Note Expenses in connection with crew changes are not allowable in General Average.		
		Xiamen Port Tugboat Co., Ltd		
224.552,00	B10	Transportation of personnel to and from the vessel on 26/ 27.05.2011 and use of 16 tugs for 3 attempts to refloat the vessel on 18, 19 and 22.05.2011	CNY	1.452.800,00
		Paid and exchanged with	USD	224.552,00
		Donghai Rescue Bureau Ministry of Transport		
311.417,99	B11	Dispatch and supervision of 3 tugs used from 18 - 22.05.2011 upon request of Xiamen Search and Rescue Centre	CNY	2.000.000,00
		Paid and exchanged with	USD	311.417,99
576.284,36		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	13.910,87	22.862,35
		772,82
	2.768,33	
		224.552,00
		311.417,99
USD	16.679,20	559.605,16

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 576.284,36		brought over		
		Xiamen Tonghai Shipping Co.		
264.705,06	B12	Pollution prevention expenses from 18 - 27.05.2011, including for oil skimming barge, support barges, inflatable oil booms, spraying device, senior commander, technical/ clean up/ logistic personnel, shuttle barges, recycling and cleaning of oil booms, management fee and compensation for oil boom damage	CNY	1.706.472,00
		Less:- Discount	- ' -	(6.472,00)
			CNY	1.700.000,00
		Paid and exchanged with	USD	264.705,06
		Xiamen Tonghai Shipping Co.		
311.418,20	B13	Oil barge services between 20 - 31.05.2011	CNY	2.000.000,00
		Paid and exchanged with	USD	311.418,20
		Zhangzhou Development Zone Haihang Transportation Co.		
6.182,60	B14	Container barge services from 21 - 23.05.2011	CNY	40.000,00
		Paid and exchanged with	USD	6.182,60
1.158.590,22		carried forward to pages 89/90		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	16.679,20	559.605,16
		264.705,06
		311.418,20
		6.182,60
USD	16.679,20	1.141.911,02

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD				
		C. Crew Wages, Maintenance and Bunker Consumption		
		Shipowners		
		Wages and maintenance of the Master, Officers and crew as well as consumption of bunkers during the prolongation of the voyage, occasioned by the vessel's detention at Xiamen, following successful refloating and whilst reloading bunkers that had previously been transferred into bunker barges when the vessel was aground, i.e.		
		From 26.05.2011 05.21 hrs — Proceeded to safe anchorage as place of refuge subsequently to refloating		
		To 28.05.2011 08.26 hrs — Heaved up anchor and proceeded to Hong Kong	2 days 03 hrs 05 mins	
			i.e. 2 days	
		Crew Wages		
5.969,81	C1	Crew wages for the month of May 2011	USD	92.532,00
		Pro-rata for 2 days	USD	5.969,81
		Maintenance		
810,00	C2	Maintenance for a crew of 27 for 2 days at USD15,00 per crew member per day	USD	810,00
6.779,81		carried over		

	GENERAL AVERAGE
	USD
	5.969,81
	810,00
USD	6.779,81

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 6.779,81		brought over		
		Bunkers		
30.981,33	C3	Bunkers consumed as follows:-		
		During efforts to refloat		
		15,5 MT HFO at USD 581,00 per MT	USD	9.005,50
		During detention whilst reloading bunkers		
		37,4 MT HFO at USD 581,00 per MT	- ' -	21.729,40
		136 Ltrs Auxiliary Engine lube oil at USD 1,812 per ltr	- ' -	246,43
			USD	30.981,33
		Adjusters' Note The quantities of heavy fuel oil and lube oil claimed by the Owners in respect of refloating efforts and consumption during detention whilst reloading discharged bunkers, are considered fair and reasonable by our Technical Consultant.		
37.761,14		carried forward to pages 89/90		

	GENERAL AVERAGE
	USD
	6.779,81
	30.981,33
USD	37.761,14

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD				
		D. Miscellaneous Disbursements		
		Global Salvage Consultancy Pte Ltd., Singapore		
22.786,20	D1	Salvage consultancy services rendered on board the CMA CGM LIBRA from 20 - 27.05.2011, including out-of-pocket expenses	EUR	15.838,98
		Paid and exchanged with	USD	22.786,20
		Bureau Veritas SA, Neuilly sur Seine		
30.340,50	D2	Fees of Class Emergency Response Service rendering advice in connection with the salvage operation from 17 - 25.05.2011	EUR	21.090,00
		Paid and exchanged with	USD	30.340,50
		Huatai Insurance Agency & Consultant Service Ltd., Beijing		
7.530,00	D3	Fees and expenses of local Correspondents co-ordinating and arranging for attendance of Surveyors during the removal of bunkers and during divers' surveys	USD	7.530,00
		Wang Jing & Co., Xiamen		
4.097,11	D4	Fees and expenses of Lawyers advising on aspects concerning salvage operations in Chinese waters, liaising with the MSA in connection with the refloating operations and reviewing terms of engagement of barges for lightering operations between 18 - 24.05.2011	CNY	26.344,40
		Paid and exchanged with	USD	4.097,11
64.753,81		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
		22.786,20
		30.340,50
		7.530,00
		4.097,11
USD	0,00	64.753,81

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 64.753,81		brought over		
		Hightime Law Office, Shanghai		
101.075,75	D5	Fees and expenses of Chinese Lawyers assisting with the collection of General Average securities from cargo interests in the P. R. of China, incl. liaising with Cargo Insurers regarding the submission of satisfactory security, reviewing security submitted to ensure the validity and submitting same to the appointed Average Adjusters, during the period from 06.06 - 18.08.2011	USD	101.000,00
		Paid with, incl. bank charges	USD	101.075,75
		N.B.: Advanced by the Average Adjusters.		
		Shanghai Double Hope Maritime Development Co., Ltd., Shanghai		
4.647,10	D6	Fees and expenses of General Average Cargo Surveyors attending the cargo lightering operations from C.C. LIBRA at Xiamen between 25 - 27.05.2011	USD	4.640,00
		Paid with, incl. bank charges	USD	4.647,10
		N.B.: Advanced by the Average Adjusters.		
		N. Shipley & Co. Ltd., Esher		
807,10	D7	Valuation fee for m.v. C.C. LIBRA	GBP	500,00
		Paid and exchanged with	USD	807,10
		N.B.: Advanced by the Average Adjusters.		
171.283,76		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	0,00	64.753,81
		101.075,75
		4.647,10
		807,10
USD	0,00	171.283,76

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 171.283,76		brought over		
		Main Line Operators		
168.050,00	D8	Allowance for Main Line Operators' Agents' out-of-pocket expenses related to the collection of General Average securities, as follows:-		
		ANL Container Line - Cargo 505 Bs/L @ USD 50,00	USD	25.250,00
		APL - Cargo 180 Bs/L @ USD 50,00	- ' -	9.000,00
		CMA CGM - Cargo 1812 Bs/L @ USD 50,00	- ' -	90.600,00
		CNC Line - Cargo 7 Bs/L @ USD 50,00	- ' -	350,00
		China Shipping Lines - Cargo 249 Bs/L @ USD 50,00	- ' -	12.450,00
		Evergreen Marine - Cargo 125 Bs/L @ USD 50,00	- ' -	6.250,00
		FESCO - Cargo 10 Bs/L @ USD 50,00	- ' -	500,00
		Hyundai Merchant Marine - Cargo 180 Bs/L @ USD 50,00	- ' -	9.000,00
		Delmas - Cargo 157 Bs/L @ USD 50,00	- ' -	7.850,00
		MOL (Liner) - Cargo 136 Bs/L @ USD 50,00	- ' -	6.800,00
			USD	168.050,00
		CMA CGM, Marseille		
50.000,00	D9	Allowance for CMA CGM Head Office's out-of-pocket expenses, co-ordinating the collection of General Average securities and communicating extensively with all Main Line Operators, their Agents and with the Average Adjusters	USD	50.000,00
389.333,76		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	0,00	171.283,76
		168.050,00
		50.000,00
USD	0,00	389.333,76

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 389.333,76		brought over		
		CMA CGM, Marseille		
	D10	Travel expenses of various personnel in connection with the Salvage aspect, as follows:-		
17.399,23	a	**In May 2011**		
		Mr. Volker Heil (Fleet Manager)		
		Air fare Marseille - Xiamen - Marseille, 18.05 - 27.05.2011	EUR	3.247,00
		Hotel, meals and transport	- ' -	979,81
		Capt. Kevork Hekimian (Deputy General Manager)		
		Air fare Marseille - Xiamen - Marseille, 21.05 - 28.05.2011	- ' -	6.557,59
		Hotel, meals and transport	- ' -	1.397,89
			EUR	12.182,29
		Paid and exchanged with	USD	17.399,23
4.327,10	b	**In June 2012**		
		Mr. Mathias Besnard (Deputy Vice President / Legal Department)		
		Air fare Marseille - London - Kristiansand - Marseille, 11.06 - 12.06.2012	EUR	1.228,60
		Hotel, meals and transport	- ' -	1.110,30
		Mr. Koffi Dorkenoo (Lawyer / Legal Department)		
		Air fare Marseille - London - Marseille, 11.06 - 12.06.2012	- ' -	788,12
		Hotel, meals and transport	- ' -	313,60
			EUR	3.440,62
		Paid and exchanged with	USD	4.327,10
1.222,95	c	**In July 2013**		
		Mr. Koffi Dorkenoo (Lawyer / Legal Department)		
		Air fare Marseille - London - Marseille, 03.07.2013	EUR	922,12
		Paid and exchanged with	USD	1.222,95
412.283,04				

	REMAINDER	GENERAL AVERAGE
	USD	USD
	0,00	389.333,76
		17.399,23
	1.252,16	3.074,94
		1.222,95
USD	1.252,16	411.030,88

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD 412.283,04		brought over		
7.072,50	d	**In February 2014**		
		Mr. Mathias Besnard (Deputy Vice President / Legal Department)		
		Air fare Marseille - Shanghai - Marseille, 23.02 - 01.03.2014	EUR	4.510,10
		Hotel in Shanghai, 24.02 - 28.02.2014	- ' -	658,95
			EUR	5.169,05
		Paid and exchanged with	USD	7.072,50
		Adjusters' Note We are advised that Mr. Heil was liaising with the local authorities and co-ordinating the technical aspects of the refloating operation as Shipowners' Representative, in particular prior to the LOF being signed. Captain Hekimian was overseeing the contracts with local service providers in connection with the refloating operation and was conducting the negotiations, which achieved a substantial reduction of costs. Mr. Besnard and Mr. Dorkenoo were both deeply involved in the process of resolving the Salvage aspect, attending meetings in London in June 2012 and July 2013. Mr. Besnard also attended the meeting in Shanghai in February 2014, together with Leading Hull Underwriters' Representative and the appointed Solicitors, during which the Salvage Settlement was concluded.		
		20-8-8 Contelligence, Berlin		
4.493,40	D11	Services rendered by Container Cargo Specialist Mr. Dag Froehmcke at Xiamen during the period from 18 - 27.05.2011, coordinating the discharge of containers during the refloating operation	EUR	3.101,70
		Paid and exchanged with	USD	4.493,40
423.848,94		carried forward to pages 89/90		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	1.252,16	411.030,88
		7.072,50
		4.493,40
USD	1.252,16	422.596,78

TOTAL	VOU-CHER	SPECIFICATION OF COSTS		
USD				
		SUMMARY OF DISBURSEMENTS AND ALLOWANCES		
		A. Salvage Remuneration and Costs		
10.310.794,05		Brought forward from pages 65/66		
		B. Expenditure in China		
1.158.590,22		Brought forward from pages 73/74		
		C. Crew Wages, Maintenance and Bunker Consumption		
37.761,14		Brought forward from pages 77/78		
		D. Miscellaneous Disbursements		
423.848,94		Brought forward from pages 87/88		
11.930.994,35				
		In order to give effect to differing provisions under the applicable sets of York-Antwerp Rules, i.e. 1974/1990 and 1994 respectively, the Summary is continued under separate columns		
		Commission on General Average Disbursements in accordance with Rule XX YAR 1974/1990 and 1994		
		2 per cent on ……	USD 11.306.541,09	USD 226.130,84
		Interest on General Average Disbursements and Allowances at 7 per cent per annum in accordance with Rule XXI, as per detailed calculations in our file		
		7 per cent as per YAR 1974/1990		USD 509.909,02
		7 per cent as per YAR 1994		USD 711.848,06
		carried over		

	REMAINDER	GENERAL AVERAGE
	USD	USD
	107.530,81	10.203.263,24
	16.679,20	1.141.911,02
		37.761,14
	1.252,16	422.596,78
USD	125.462,17	11.805.532,18

	YAR 1974/1990 GENERAL AVERAGE	YAR 1994 GENERAL AVERAGE
	USD	USD
	11.805.532,18	11.805.532,18
	226.130,84	226.130,84
	509.909,02	
		711.848,06
USD	12.541.572,04	12.743.511,08

brought over

Albatross Adjusters Limited, Limassol

Fees and expenses of Technical Consultant Mr. Ray Wickman, Chartered Engineer.	USD	750,00
Expenses, including for travelling, communication charges, postage, courier fees, typing of letters and e-mails and producing copies of this Adjustment.	- ' -	30.566,83
Fees for our professional services from inception of the casualty, obtaining cargo manifests from main line operators, setting up and maintaining a comprehensive cargo and containers database and spreadsheets for controlling and following up on the collection of securities, communicating with cargo and container interests, communicating with main line operators and their agents, publishing detailed instructions on how to submit security on the company website, collecting and examining extensive documentation, issuing releasing advices for the authorization of cargo delivery, publishing updated lists of secured containers, maintaining a dedicated trust account for cash deposits paid as general average security, allocating cash deposits to cargo consignments, allocating interests to cash deposits, calculating contributory values, correspondence with all parties concerned, including in connection with the collection of General Average contributions.	- ' -	744.052,30
Fees for our professional services from inception of the casualty, collecting and examining extensive documentation, including disbursements accounts with all supporting vouchers, liaising with Shipowners, Brokers and Surveyors, obtaining a valuation of the vessel, calculating contributory values, calculating General Average commission and interest, correspondence with all parties concerned, including in connection with the collection of General Average contributions and settlement with Shipowners, involvement of co-Adjusters and for the preparation and issue of the Adjustment of General Average.	- ' -	90.621,53
	USD	865.990,66

	YAR 1974/1990 GENERAL AVERAGE	YAR 1994 GENERAL AVERAGE
	USD	USD
	12.541.572,04	12.743.511,08
	865.990,66	865.990,66
USD	13.407.562,70	13.609.501,74

III. DISTRIBUTION OF GENERAL AVERAGE

Adjustment under York-Antwerp Rules 1974/1990

The General Average Disbursements as per Schedule I in the amount of ……	USD	13.407.562,70	
distributed over the Contributory Capital of ……	USD	503.024.004,00	
results in a Contributory Rate of …….		2,66539223	%

Adjustment under York-Antwerp Rules 1994

The General Average Disbursements as per Schedule I in the amount of ……	USD	13.609.501,74	
distributed over the Contributory Capital of ……	USD	503.024.004,00	
results in a Contributory Rate of …….		2,70553724	%

	Contributory Values	Contributions to General Average	Contributions to General Average
		YAR1974/1990	YAR1994
	Contr. Rate (%)	2,66539223	2,70553724
	USD	USD	USD
A. The Vessel			
with a contributory value as per Schedule I of	119.614.487,00		
to pay		3.188.195,24	3.236.214,48
B. The Cargo (incl. Freight)			
with a contributory value as per Schedule I of	367.418.702,00		
to pay		9.793.149,52	9.940.649,80
C. The Containers			
with a contributory value as per Schedule I of	14.315.119,00		
to pay		381.554,07	387.300,88
D. The Bunkers			
with a contributory value as per Schedule I of	1.675.696,00		
to pay		44.663,87	45.336,58
USD	503.024.004,00	13.407.562,70	13.609.501,74

III. DISTRIBUTION OF GENERAL AVERAGE (Cont/d)

Claim of General Average apportioned
according to different sets of York-Antwerp Rules stipulated in the Contracts of Affreightment

Adjusters' Note
For Cargo and Containers shipped under Bill of Lading forms used by CMA CGM, ANL, CNC, CHINA SHIPPING the General Average has to be drawn up in accordance with the York-Antwerp Rules 1974/1990, whereas for those shipped under Bill of Lading forms used by DELMAS, HYUNDAI, APL, EMC, MOL FESCO the York-Antwerp Rules 1994 are applicable, resulting in the following ratios:-

	USD	USD	%	%
Cargo YAR1974/90	283.430.765,00		77,14108276	
Containers YAR1974/90	10.747.504,00		75,07799272	
Total Cargo & Containers YAR1974/90	294.178.269,00	294.178.269,00		77,06371634
Cargo YAR1994	83.987.937,00		22,85891724	
Containers YAR1994	3.567.615,00		24,92200728	
Total Cargo & Containers YAR1994	87.555.552,00	87.555.552,00		22,93628366
Total Cargo & Containers	USD	381.733.821,00		100,00000000

		USD	USD
Adjustment under York-Antwerp Rules 1974/1990			
Claim of General Average as per page 92	USD	13.407.562,70	
at 77,06371634 %			10.332.366,09
Adjustment under York-Antwerp Rules 1994			
Claim of General Average as per page 92	USD	13.609.501,74	
at 22,93628366 %			3.121.513,92
Claim of General Average (Apportioned)	USD		13.453.880,01

III. DISTRIBUTION OF GENERAL AVERAGE (Cont/d)

	Contributory Values	Contributions to General Average
		YAR1974/90 & YAR1994 Apportioned
	Contr. Rate (%):	2,67460000
	USD	USD
A. The Vessel		
with a contributory value		
as per Schedule I of	119.614.487,00	
to pay		3.199.209,07
B. The Cargo (incl. Freight)		
with a contributory value		
as per Schedule I of	367.418.702,00	
to pay		9.826.980,60
C. The Containers		
with a contributory value		
as per Schedule I of	14.315.119,00	
to pay		382.872,17
D. The Bunkers		
with a contributory value		
as per Schedule I of	1.675.696,00	
to pay		44.818,17
USD	503.024.004,00	13.453.880,01

Limassol / Marseille, 30th June 2014

ALBATROSS ADJUSTERS LIMITED

Ronaldo Drège
Director
ALBATROSS ADJUSTERS LIMITED

Pierre Albertini
Expert Répartiteur